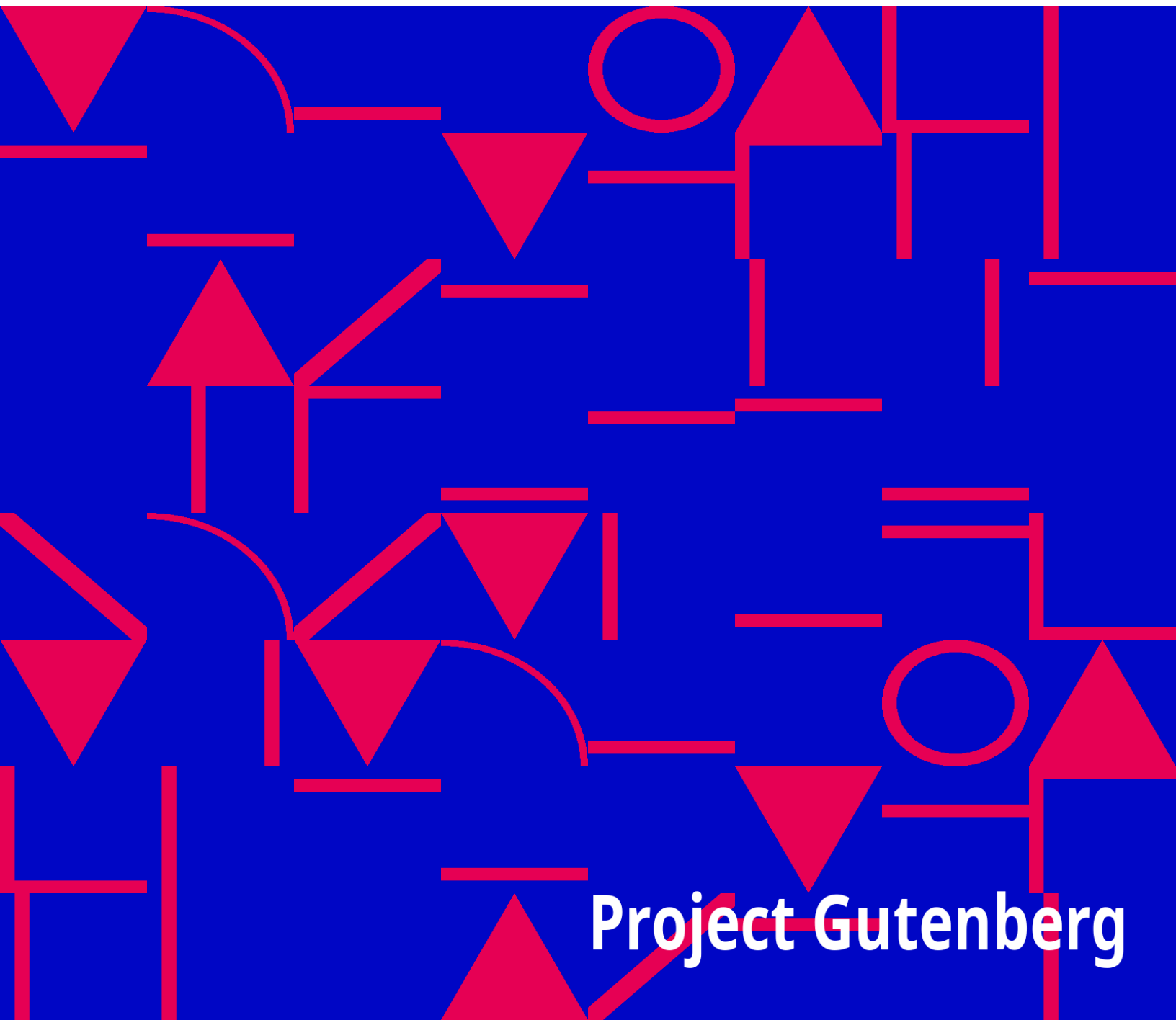


Sir Walter Scott and the Border Minstrelsy

Andrew Lang

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Andrew Lang



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SCOTT AND THE BORDER MINSTRELSY ***

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SIR WALTER SCOTT
AND THE
BORDER MINSTRELSY

BY
ANDREW LANG

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PREFACE

PERSONS not much interested in, or cognisant of, “antiquarian old womanries,” as Sir Walter called them, may ask “what all the pother is about,” in this little tractate. On my side it is “about” the veracity of Sir Walter Scott. He has been suspected of helping to compose, and of issuing as a genuine antique, a ballad, *Auld Maitland*. He also wrote about the ballad, as a thing obtained from recitation, to two friends and fellow-antiquaries. If to Scott’s knowledge it was a modern imitation, Sir Walter deliberately lied.

He did not: he did obtain the whole ballad from Hogg, who got it from recitation—as I believe, and try to prove, and as Scott certainly believed. The facts in the case exist in published works, and in manuscript letters of Ritson to Scott, and Hogg to Scott, and in the original MS. of the song, with a note by Hogg to Laidlaw. If we are interested in the truth about the matter, we ought at least to read the very accessible material before bringing charges against the Sheriff and the Shepherd of Ettrick.

Whether *Auld Maitland* be a good or a bad ballad is not part of the question. It was a favourite of mine in childhood, and I agree with Scott in thinking that it has strong dramatic situations. If it is a bad ballad, such as many people could compose, then it is not by Sir Walter.

The *Ballad of Otterburne* is said to have been constructed from Herd’s version, tempered by Percy’s version, with additions from a modern imagination. We have merely to read Professor Child’s edition of *Otterburne*, with Hogg’s letter covering his MS. copy of *Otterburne* from recitation, to see that this is a wholly erroneous view of the matter. We have all the materials for forming a judgment accessible to us in print, and have no excuse for preferring our own conjectures.

“No one now believes,” it may be said, “in the aged persons who lived at the head of Ettrick,” and recited *Otterburne* to Hogg. Colonel Elliot disbelieves, but he shows no signs of having read Hogg’s curious letter, in two parts, about these “old parties”; a letter written on the day when Hogg, he says, twice “pumped their memories.”

I print this letter, and, if any one chooses to think that it is a crafty fabrication, I can only say that its craft would have beguiled myself as it beguiled Scott.

It is a common, cheap, and ignorant scepticism that disbelieves in the existence, in Scott’s day, or in ours, of persons who know and can recite variants of our traditional ballads. The strange song of *The Bitter Withy*, unknown to Professor Child, was recovered from recitation but lately, in several English counties. The ignoble lay of *Johnny Johnston* has also been recovered: it is widely diffused. I myself obtained a genuine version of *Where Goudie rins*, through the kindness of Lady Mary Glyn; and a friend of Lady Rosalind Northcote procured the low English version of *Young Beichan*, or *Lord Bateman*, from an old woman in a rural workhouse. In Shropshire my friend Miss Burne, the president of the Folk-Lore Society, received from Mr. Hubert Smith, in 1883, a very remarkable variant, undoubtedly antique, of *The Wife of Usher’s Well*. ^[0a] In 1896 Miss Backus found, in the hills of Polk County, North Carolina, another variant, intermediate between the Shropshire and the ordinary version. ^[0b]

There are many other examples of this persistence of ballads in the popular memory, even in our day, and only persons ignorant of the facts can suppose that, a century ago, there were no reciters at the head of Ettrick, and elsewhere in Scotland. Not even now has the halfpenny newspaper wholly destroyed the memories of traditional poetry and of traditional tales even in the English-speaking parts of our islands, while in the Highlands a rich harvest awaits the reapers.

I could not have produced the facts, about *Auld Maitland* especially, and in some other cases, without the kind and ungrudging aid, freely given to a stranger, of Mr. William Macmath, whose knowledge of ballad-lore, and especially of the ballad manuscripts at Abbotsford, is unrivalled. As to *Auld Maitland*, Mr. T. F. Henderson, in his edition of the *Minstrelsy* (Blackwood,

1892), also made due use of Hogg's MS., and his edition is most valuable to every student of Scott's method of editing, being based on the Abbotsford MSS. Mr. Henderson suspects, more than I do, the veracity of the Shepherd.

I am under obligations to Colonel Elliot's book, as it has drawn my attention anew to *Auld Maitland*, a topic which I had studied "somewhat lazily," like Quintus Smyrnaeus. I supposed that there was an inconsistency in two of Scott's accounts as to how he obtained the ballad. As Colonel Elliot points out, there was no inconsistency. Scott had two copies. One was Hogg's MS.: the other was derived from the recitation of Hogg's mother.

This trifle is addressed to lovers of Scott, of the Border, and of ballads, *et non aultres*.

It is curious to see how facts make havoc of the conjectures of the Higher Criticism in the case of *Auld Maitland*. If Hogg was the forger of that ballad, I asked, how did he know the traditions about Maitland and his three sons, which we only know from poems of about 1576 in the manuscripts of Sir Richard Maitland? These poems in 1802 were, as far as I am aware, still unpublished.

Colonel Elliot urged that Leyden would know the poems, and must have known Hogg. From Leyden, then, Hogg would get the information. In the text I have urged that Leyden did not know Hogg. I am able now to prove that Hogg and Leyden never met till after Laidlaw gave the manuscript of *Auld Maitland* to Hogg.

The fact is given in the original manuscript of Laidlaw's *Recollections of Sir Walter Scott* (among the Laing MSS. in the library of the University of Edinburgh). Carruthers, in publishing Laidlaw's reminiscences, omitted the following passage. After Scott had read *Auld Maitland* aloud to Leyden and Laird Laidlaw, the three rode together to dine at Whitehope.

"Near the Craighbents," says Laidlaw, "Mr. Scott and Leyden drew together in a close and seemingly private conversation. I, of course, fell back. After a minute or two, Leyden reined in his horse (a black horse that Mr. Scott's servant used to ride) and let me come up. 'This Hogg,' said he, 'writes

verses, I understand.’ I assured him that he wrote very beautiful verses, and with great facility. ‘But I trust,’ he replied, ‘that there is no fear of his passing off any of his own upon Scott for old ballads.’ I again assured him that he would never think of such a thing; and neither would he at that period of his life.

“‘Let him beware of forgery,’ cried Leyden with great force and energy, and in, I suppose, what Mr. Scott used afterwards to call the *saw tones of his voice*.”

This proves that Leyden had no personal knowledge of “this Hogg,” and did not supply the shepherd with the traditions about Auld Maitland.

Mr. W. J. Kennedy, of Hawick, pointed out to me this passage in Laidlaw’s *Recollections*, edited from the MS. by Mr. James Sinton, as reprinted from the *Transactions* of the Hawick Archæological Society, 1905.

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SCOTT AND THE BALLADS

It was through his collecting and editing of *The Border Minstrelsy* that Sir Walter Scott glided from law into literature. The history of the conception and completion of his task, “a labour of love truly, if ever such there was,” says Lockhart, is well known, but the tale must be briefly told if we are to understand the following essays in defence of Scott’s literary morality.

Late in 1799 Scott wrote to James Ballantyne, then a printer in Kelso, “I have been for years collecting Border ballads,” and he thought that he could put together “such a selection as might make a neat little volume, to sell for four or five shillings.” In December 1799 Scott received the office of Sheriff of Selkirkshire, or, as he preferred to say, of Ettrick Forest. In the Forest, as was natural, he found much of his materials. The people at the head of Ettrick were still, says Hogg, [\[1a\]](#) like many of the Highlanders even now, in that they cheered the long winter nights with the telling of old tales; and some aged people still remembered, no doubt in a defective and corrupted state, many old ballads. Some of these, especially the ballads of Border raids and rescues, may never even have been written down by the original authors. The Borderers, says Lesley, Bishop of Ross, writing in 1578, “take much pleasure in their old music and chanted songs, which they themselves compose, whether about the deeds of their ancestors, or about ingenious raiding tricks and stratagems.” [\[2a\]](#)

The historical ballads about the deeds of their ancestors would be far more romantic than scientifically accurate. The verses, as they passed from mouth to mouth and from generation to generation, would be in a constant state of flux and change. When a man forgot a verse, he would make something to take its place. A more or less appropriate stanza from another ballad would slip in; or the reciter would tell in prose the matter of which he forgot the versified form.

Again, in the towns, street ballads on remarkable events, as early at least as the age of Henry VIII., were written or printed. Knox speaks of ballads on Queen Mary's four Maries. Of these ballads only one is left, and it is a libel. The hanging of a French apothecary of the Queen, and a French waiting-maid, for child murder, has been transferred to one of the Maries, or rather to an apocryphal Mary Hamilton, with Darnley for her lover. Of this ballad twenty-eight variants—and extremely various they are—were collected by Professor Child in his *English and Scottish Popular Ballads* (ten parts, 1882–1898). In one mangled form or another such ballads would drift at last even to Ettrick Forest.

A ballad may be found in a form which the first author could scarcely recognise, dozens of hands, in various generations, having been at work on it. At any period, especially in the seventeenth and eighteenth centuries, the cheap press might print a sheet of the ballads, edited and interpolated by the very lowest of printer's hacks; that copy would circulate, be lost, and become in turn a traditional source, though full of modernisms. Or an educated person might make a written copy, filling up gaps himself in late seventeenth or in eighteenth century ballad style, and this might pass into the memory of the children and servants of the house, and so to the herds and to the farm lasses. I suspect that this process may have occurred in the cases of *Auld Maitland* and of *The Outlaw Murray*—"these two bores" Mr. Child is said to have styled them.

When Allan Ramsay, about 1720, took up and printed a ballad, he altered it if he pleased. More faithful to his texts (wherever he got them), was David Herd, in his collection of 1776, but his version did not reach, as we shall see, old reciters in Ettrick. If Scott found any traditional ballads in Ettrick, as his collectors certainly did, they had passed through the processes described. They needed re-editing of some sort if they were to be intelligible, and readable with pleasure.

In 1800, apparently, while Scott made only brief flying visits from the little inn of Clovenfords, on Tweed, to his sheriffdom, he found a coadjutor. Richard Heber, the wealthy and luxurious antiquary and collector, looked into Constable's first little bookselling shop, and saw a strange, poor young student prowling among the books. This was John Leyden, son of a shepherd in Roxburghshire, a lad living in extreme poverty.

Leyden, in 1800, was making himself a savant. Heber spoke with him, found that he was rich in ballad-lore, and carried him to Scott. He was presently introduced into the best society in Edinburgh (which would not happen in our time), and a casual note of Scott's proves that he did not leave Leyden in poverty. Early in 1802, Leyden got the promise of an East Indian appointment, read medicine furiously, and sailed for the East in the beginning of 1803. It does not appear that Leyden went ballad-hunting in Ettrick before he rode thither with Scott in the spring of 1802. He was busy with books, with editorial work, and in aiding Scott in Edinburgh. It was he who insisted that a small volume at five shillings was far too narrow for the materials collected.

Scott also corresponded with the aged Percy, Bishop of Dromore, editor of the *Reliques*, and with Joseph Ritson, the precise collector, Percy's bitter foe. Unfortunately the correspondence on ballads with Ritson, who died in 1803, is but scanty; nor has most of the correspondence with another student, George Ellis, been published. Even in Mr. Douglas's edition of Scott's *Familiar Letters*, the portion of an important letter of Hogg's which deals with ballad-lore is omitted. I shall give the letter in full.

In 1800–01, “*The Minstrelsy* formed the editor's chief occupation,” says Lockhart; but later, up to April 1801, the Forest and Liddesdale had yielded little material. In fact, I do not know that Scott ever procured much in Liddesdale, where he had no Hogg or Laidlaw always on the spot, and in touch with the old people. It was in spring, 1802, that Scott first met his lifelong friend, William Laidlaw, farmer in Blackhouse, on Douglasburn, in Yarrow. Laidlaw, as is later proved completely, introduced Scott to Hogg, then a very unsophisticated shepherd. “Laidlaw,” says Lockhart, “took care that Scott should see, without delay, James Hogg.” ^[4a] These two men, Hogg and Laidlaw, knowing the country people well, were Scott's chief sources of recited balladry; and probably they sometimes improved, in making their copies, the materials won from the failing memories of the old. Thus Laidlaw, while tenant in Traquair Knowe, obtained from recitation, *The Dæmon Lover*. Scott does not tell us whether or not he knew the fact that Laidlaw wrote in stanza 6 (half of it traditional), stanza 12 (also a ballad formula), stanzas 17 and 18 (necessary to complete the sense; the last two lines of 18 are purely and romantically modern).

We shall later quote Hogg's account of his own dealings with his raw materials from recitation.

In January 1802 Scott published the two first volumes of *The Minstrelsy*. Lockhart describes the enthusiasm of dukes, fine ladies, and antiquarians. In the end of April 1803 the third volume appeared, including ballads obtained through Hogg and Laidlaw in spring 1802. Scott, by his store of historic anecdote in his introductions and notes, by his way of vivifying the past, and by his method of editing, revived, but did not create, the interest in the romance of ballad poetry.

It had always existed. We all know Sidney's words on "The Douglas and the Percy"; Addison's on folk-poetry; Mr. Pepys' ballad collection; the ballads in Tom Durfey's and other miscellanies; Allan Ramsay's *Evergreen*; Bishop Percy's *Reliques of Ancient Poetry*; Herd's ballad volumes of 1776; Evans' collections; Burns' remakings of old songs; Ritson's publications, and so forth. But the genius of Burns, while it transfigured many old songs, was not often exercised on old narrative ballads, and when Scott produced *The Minstrelsy*, the taste for ballads was confined to amateurs of early literature, and to country folk.

Sir Walter's method of editing, of presenting his traditional materials, was literary, and, usually, not scientific. A modern collector would publish things—legends, ballads, or folk-tales—exactly as he found them in old broadsides, or in MS. copies, or received them from oral recitation. He would give the names and residences and circumstances of the reciters or narrators (Herd, in 1776, gave no such information). He would fill up no gaps with his own inventions, would add no stanzas of his own, and the circulation of his work would arrive at some two or three hundred copies given away!

As Lockhart says, "Scott's diligent zeal had put him in possession of a variety of copies in various stages of preservation, and to the task of selecting a standard text among such a diversity of materials he brought a knowledge of old manners and phraseology, and a manly simplicity of taste, such as had never before been united in the person of a poetical antiquary."

Lockhart speaks of "The editor's conscientious fidelity . . . which prevented the introduction of anything new, and his pure taste in the balancing of

discordant recitations.” He had already written that “Scott had, I firmly believe, interpolated hardly a line or even an epithet of his own.” [\[8a\]](#)

It is clear that Lockhart had not compared the texts in *The Minstrelsy* with the mass of manuscript materials which are still at Abbotsford. These, copied by the accurate Mr. Macmath, have been published in the monumental collection of *English and Scottish Popular Ballads*, in ten parts, by the late Professor Child of Harvard, the greatest of scholars in ballad-lore. From his book we often know exactly what kinds of copies of ballads Scott possessed, and what alterations he made in his copies. The *Ballad of Otterburne* is especially instructive, as we shall see later. But of the most famous of Border historical ballads, *Kinmont Willie*, and its companion, *Jamie Telfer of the Fair Dodhead*, Scott has left no original manuscript texts. Now into each of these ballads Scott has written (if internal evidence be worth anything) verses of his own; stanzas unmistakably marked by his own spirit, energy, sense of romance, and, occasionally, by a somewhat inflated rhetoric. On this point doubt is not easy. When he met the names of his chief, Buccleuch, and of his favourite ancestor, Wat of Warden, Scott did, in two cases, for those heroes what, by his own confession, he did for anecdotes that came in his way—he decked them out “with a cocked hat and a sword.”

Sir Walter knew perfectly well that he was not “playing the game” in a truly scientific spirit. He explains his ideas in his “Essay on Popular Poetry” as late as 1830. He mentions Joseph Ritson’s “extreme attachment to the severity of truth,” and his attacks on Bishop Percy’s purely literary treatment of the materials of his *Reliques of Ancient Poetry* (1765).

As Scott says, “by Percy words were altered, phrases improved, and whole verses were inserted or omitted at pleasure.” Percy “accommodated” the ballads “with such emendations as might recommend them to the modern taste.” Ritson cried “forgery,” but Percy, says Scott, had to win a hearing from his age, and confessed (in general terms) to his additions and decorations.

Scott then speaks reprovingly of Pinkerton’s wholesale fabrication of *entire ballads* (1783), a crime acknowledged later by the culprit (1786). Scott applauds Ritson’s accuracy, but regrets his preference of the worst to the

better readings, as if their inferiority was a security for their being genuine. Scott preferred the best, the most poetical readings.

In 1830, Scott also wrote an essay on “Imitations of the Ancient Ballads,” and spoke very leniently of imitations passed off as authentic. “There is no small degree of cant in the violent invectives with which impostors of this nature have been assailed.” As to *Hardyknute*, the favourite poem of his infancy, “the first that I ever learned and the last that I shall forget,” he says, “the public is surely more enriched by the contribution than injured by the deception.” Besides, he says, the deception almost never deceives.

His method in *The Minstrelsy*, he writes, was “to imitate the plan and style of Bishop Percy, observing only more strict fidelity concerning my originals.” That is to say, he avowedly made up texts out of a variety of copies, when he had more copies than one. This is frequently acknowledged by Scott; what he does not acknowledge is his own occasional interpolation of stanzas. A good example is *The Gay Gosshawk*. He had a MS. of his own “of some antiquity,” a MS. of Mrs. Brown, a famous reciter and collector of the eighteenth century; and the Abbotsford MSS. show isolated stanzas from Hogg, and a copy from Will Laidlaw. Mr. T. F. Henderson’s notes [\[10a\]](#) display the methods of selection, combination, emendation, and possible interpolation.

By these methods Scott composed “a standard text,” now the classical text, of the ballads which he published. Ballad lovers, who are not specialists, go to *The Minstrelsy* for their favourite fare, and for historical elucidation and anecdote.

Scott often mentions his sources of all kinds, such as MSS. of Herd and Mrs. Brown; “an old person”; “an old woman at Kirkhill, West Lothian”; “an ostler at Carlisle”; Allan Ramsay’s *Tea-Table Miscellany*; Surtees of Mainsforth (these ballads are by Surtees himself: Scott never suspected him); Caw’s *Hawick Museum* (1774); Ritson’s copies, others from Leyden; the Glenriddell MSS. (collected by the friend of Burns); on several occasions copies from recitations procured by James Hogg or Will Laidlaw, and possibly or probably each of these men emended the copy he obtained; while Scott combined and emended all in his published text.

Sometimes Scott gives no source at all, and in these cases research finds variants in old broadsides, or elsewhere.

In thirteen cases he gives no source, or “from tradition,” which is the same thing; though “tradition in Ettrick Forest” may sometimes imply, once certainly does, the intermediary Hogg, or Will Laidlaw.

We now understand Scott’s methods as editor. They are not scientific; they are literary. We also acknowledge (on internal evidence) his interpolation of his own stanzas in *Kinmont Willie* and *Jamie Telfer*, where he exalts his chief and ancestor. We cannot do otherwise (as scholars) than regret and condemn Scott’s interpolations, never confessed. As lovers of poetry we acknowledge that, without Scott’s interpolation, we could have no more of *Kinmont Willie* than verses, “much mangled by reciters,” as Scott says, of a ballad perhaps no more poetical than *Jock o’ the Side*. Scott says that “some conjectural emendations have been absolutely necessary to render it intelligible.” As it is now very intelligible, to say “conjectural emendations” is a way of saying “interpolations.”

But while thus confessing Scott’s sins, I cannot believe that he, like Pinkerton, palmed off on the world any ballad or ballads of his own sole manufacture, or any ballad which he knew to be forged.

The truth is that Scott was easily deceived by a modern imitation, if he liked the poetry. Surtees hoaxed him not only with *Barthram’s Dirge* and *Anthony Featherstonhaugh*, but with a long prose excerpt from a non-existent manuscript about a phantom knight. Scott made the plot of *Marmion* hinge on this myth, in the encounter of Marmion with Wilfred as the phantasmal cavalier. He tells us that in *The Flowers of the Forest* “the manner of the ancient minstrels is so happily imitated, that it required the most positive evidence to convince the editor that the song was of modern date.” Really the author was Miss Jane Elliot (1747–1805), daughter of Sir Gilbert Elliot of Minto. Herd published a made-up copy in 1776. The tune, Scott says, is old, and he has heard an imperfect verse of the original ballad

“I ride single on my saddle,
For the flowers o’ the forest are a’ wede awa’”

The *constant* use of double rhymes within the line—

“At e’en, in the gloaming, nae younkers are roaming,”

an artifice rare in genuine ballads, might alone have proved to Scott that the poem of Miss Elliot is not popular and ancient.

I have cleared my conscience by confessing Scott’s literary sins. His interpolations, elsewhere mere stopgaps, are mainly to be found in *Kinmont Willie* and *Jamie Telfer*. His duty was to say, in his preface to each ballad, “The editor has interpolated stanza” so and so; if he made up the last verses of *Kinmont Willie* from the conclusion of a version of *Archie o’ Ca’field*, he should have said so; as he does acknowledge two stopgap interpolations by Hogg in *Auld Maitland*. But as to the conclusion of *Kinmont Willie*, he did, we shall see, make confession.

Professor Kittredge, who edited Child’s last part (X.), says in his excellent abridged edition of Child (1905), “It was no doubt the feeling that the popular ballad is a fluid and unstable thing that has prompted so many editors—among them Sir Walter Scott, whom it is impossible to assail, however much the scholarly conscience may disapprove—to deal freely with the versions that came into their hands.”

Twenty-five years after the appearance of *The Border Minstrelsy*, in 1827, appeared Motherwell’s *Minstrelsy, Ancient and Modern*. Motherwell was in favour of scientific methods of editing. Given two copies of a ballad, he says, “perhaps they may not have a single stanza which is mutual property, except certain commonplaces which seem an integral portion of the original mechanism of all our ancient ballads . . .” By selecting the most beautiful and striking passages from each copy, and making those cohere, an editor, he says, may produce a more perfect and ornate version than any that exists in tradition. Of the originals “the individuality entirely disappears.”

Motherwell disapproved of this method, which, as a rule, is Scott’s, and, scientifically, the method is not defensible. Thus, having three ballads of rescues, in similar circumstances, with a river to ford, Scott confessedly places that incident where he thinks it most “poetically appropriate”; and in all probability, by a single touch, he gives poetry in place of rough humour. Of all this Motherwell disapproved. (See *Kinmont Willie*, *infra*.)

Aytoun, in *The Ballads of Scotland*, thought Motherwell hypercritical; and also, in his practice inconsistent with his preaching. Aytoun observed, “with much regret and not a little indignation” (1859), “that later editors insinuated a doubt as to the fidelity of Sir Walter’s rendering. My firm belief, resting on documentary evidence, is that Scott was most scrupulous in adhering to the very letter of his transcripts, whenever copies of ballads, previously taken down, were submitted to him.” As an example, Aytoun, using a now lost MS. copy of about 1689–1702, of *The Outlaw Murray*, says “Sir Walter has given it throughout just as he received it.” Yet Scott’s copy, mainly from a lost Cockburn MS., contains a humorous passage on Buccleuch which Child half suspects to be by Sir Walter himself. [\[15a\]](#) It is impossible for me to know whether Child’s hesitating conjecture is right or wrong. Certainly we shall see, when Scott had but one MS. copy, as of *Auld Maitland*, his editing left little or nothing to be desired.

But now Scott is assailed, both where he deserves, and where, in my opinion, he does not deserve censure.

Scott did no more than his confessed following of Percy’s method implies, to his original text of the *Ballad of Otterburne*. This I shall prove from his original text, published by Child from the Abbotsford MSS., and by a letter from the collector of the ballad, the Ettrick Shepherd.

The facts, in this instance, apparently are utterly unknown to Lieutenant-Colonel the Hon. Fitzwilliam Elliot, in his *Further Essays on Border Ballads* (1910), pp. 1–45.

Again, I am absolutely certain, and can demonstrate, that Scott did not (as Colonel Elliot believes) detect Hogg in forging *Auld Maitland*, join with him in this fraud, and palm the ballad off on the public. Nothing of the kind occurred. Scott did not lie in this matter, both to the world and to his intimate friends, in private letters.

Once more, without better evidence than we possess, I do not believe that, in *Jamie Telfer*, Scott transferred the glory from the Elliots to the Scotts, and the shame from Buccleuch to Elliot of Stobs. The discussion leads us into very curious matter. But here, with our present materials, neither absolute proof nor disproof is possible.

Finally, as to *Kinmont Willie*, I merely give such reasons as I can find for thinking that Scott *had* “mangled” fragments of an old ballad before him, and did not merely paraphrase the narrative of Walter Scott of Satchells, in his doggerel *True History of the Name of Scott* (1688).

The positions of Colonel Elliot are in each case the reverse of mine. In the instance of *Auld Maitland* (where Scott’s conduct would be unpardonable if Colonel Elliot’s view were correct), I have absolute proof that he is entirely mistaken. For *Otterburne* I am equally fortunate; that is, I can show that Scott’s part went no further than “the making of a standard text” on his avowed principles. For *Jamie Telfer*, having no original manuscript, I admit *decorative* interpolations, and for the rest, argue on internal evidence, no other being accessible. For *Kinmont Willie*, I confess that the poem, as it stands, is Scott’s, but give reasons for thinking that he had ballad fragments in his mind, if not on paper.

It will be understood that Colonel Elliot does not, I conceive, say that his charges are *proved*, but he thinks that the evidence points to these conclusions. He “hopes that I will give reasons for my disbelief” in his theories; and “hopes, though he cannot expect that they will completely dispose of” his views about *Jamie Telfer*. [\[17a\]](#)

I give my reasons, though I entertain but slight hope of convincing my courteous opponent. That is always a task rather desperate. But the task leads me, in defence of a great memory, into a countryside, and into old times on the Border, which are so alluring that, like Socrates, I must follow where the *logos* guides me. To one conclusion it guides me, which startles myself, but I must follow the *logos*, even against the verdict of Professor Child, *notre maître à tous*. In some instances, I repeat, positive proof of the correctness of my views is impossible; all that I can do is to show that Colonel Elliot’s contrary opinions also fall far short of demonstration, or are demonstrably erroneous.

AULD MAITLAND

THE ballad of *Auld Maitland* holds in *The Border Minstrelsy* a place like that of the *Doloneia*, or Tenth Book, in the *Iliad*. Every professor of the Higher Criticism throws his stone at the *Doloneia* in passing, and every ballad-editor does as much to *Auld Maitland*. Professor Child excluded it from his monumental collection of “English and Scottish Popular Ballads,” fragments, and variants, for which Mr. Child and his friends and helpers ransacked every attainable collection of ballads in manuscript, and ballads in print, as they listened to the last murmurings of ballad tradition from the lips of old or young.

Mr. Child, says his friend and pupil, Professor Kittredge, “possessed a kind of instinct” for distinguishing what is genuine and traditional, or modern, or manipulated, or, if I may say so, “faked” in a ballad.

“This instinct, trained by thirty years of study, had become wonderfully swift in its operations, and almost infallible. A forged or retouched piece could not escape him for a moment: he detected the slightest jar in the ballad ring.” [\[18a\]](#)

But all old traditional ballads are masses of “retouches,” made through centuries, by reciters, copyists, editors, and so forth. Unluckily, Child never gave in detail his reasons for rejecting that treasure of Sir Walter’s, *Auld Maitland*. Child excluded the poem *sans phrase*. If he did this, like Falstaff “on instinct,” one can only say that antiquarian instincts are never infallible. We must apply our reason to the problem, “What is *Auld Maitland*?”

Colonel Elliot has taken this course. By far the most blighting of the many charges made by Colonel Elliot against Sir Walter Scott are concerned with the ballad of *Auld Maitland*. [\[19a\]](#) After stating that, in his opinion, “several

stanzas” of the ballad are by Sir Walter himself, Colonel Elliot sums up his own ideas thus:

“My view is that Hogg, in the first instance, tried to palm off the ballad on Scott, and failed; and then Scott palmed it off on the public, and succeeded . . . let us, as gentlemen and honest judges, admit that the responsibility of the deception rests rather on the laird (Scott) than on the herd” (Hogg.) [\[19b\]](#)

If Colonel Elliot’s “views” were correct (and it is absolutely erroneous), the guilt of “the laird” would be great. Scott conspires with a shepherd, a stranger, to palm off a forgery on the public. Scott issues the forgery, and, what is worse, in a private letter to a learned friend, he utters what I must borrow words for: he utters “cold and calculated falsehoods” about the manner in which, and the person from whom, he obtained what he calls “my first copy” of the song. If Hogg and Scott forged the poem, then when Scott told his tale of its acquisition by himself from Laidlaw, Scott lied.

Colonel Elliot is ignorant of the facts in the case. He gropes his way under the misleading light of a false date, and of fragments torn from the context of a letter which, in its complete form, has never till now been published. Where positive and published information exists, it has not always come within the range of the critic’s researches; had it done so, he would have taken the information into account, but he does not. Of the existence of Scott’s “first copy” of the ballad in manuscript our critic seems never to have heard; certainly he has not studied the MS. Had he done so he would not assign (on grounds like those of Homeric critics) this verse to Hogg and that to Scott. He would know that Scott did not interpolate a single stanza; that spelling, punctuation, and some slight verbal corrections, with an admirable emendation, were the sum of his industry: that he did not even excise two stanzas of, at earliest, eighteenth century work.

I must now clear up misconceptions which have imposed themselves on all critics of the ballad, on myself, for example, no less than on Colonel Elliot: and must tell the whole story of how the existence of the ballad first became known to Scott’s collector and friend, William Laidlaw, how he procured the copy which he presented to Sir Walter, and how Sir Walter obtained, from recitation, his “second copy,” that which he printed in *The Minstrelsy* in 1803.

In 1801 Scott, who was collecting ballads, gave a list of songs which he wanted to Mr. Andrew Mercer, of Selkirk. Mercer knew young Will Laidlaw, farmer in Blackhouse on Yarrow, where Hogg had been a shepherd for ten years. Laidlaw applied for two ballads, one of them *The Outlaw Murray*, to Hogg, then shepherding at Ettrick House, at the head of Ettrick, above Thirlestane. Hogg replied on 20th July 1801. He could get but a few verses of *The Outlaw* from his maternal uncle, Will Laidlaw of Phawhope. He said that, from traditions known to him, he could make good songs, “but without Mr. Scott’s permission this would be an imposition, neither could I undertake it without an order from him in his own handwriting . . .” [\[21a\]](#) Laidlaw went on trying to collect songs for Scott. We now take his own account of *Auld Maitland* from a manuscript left by him. [\[21b\]](#)

“I heard from one of the servant girls, who had all the turn and qualifications for a collector, of a ballad called *Auld Maitland*, that a grandfather (maternal) of Hogg could repeat, and she herself had several of the first stanzas, which I took a note of, and have still the copy. This greatly aroused my anxiety to procure the whole, for this was a ballad not even hinted at by Mercer in his list of desiderata received from Mr. Scott. I forthwith wrote to Hogg himself, requesting him to endeavour to procure the whole ballad. In a week or two I received his reply, containing *Auld Maitland* exactly as he had received it from the recitation of his uncle Will of Phawhope, corroborated by his mother, who both said they learned it from their father, a still older Will of Phawhope, and an old man called Andrew Muir, who had been servant to the famous Mr. Boston, minister of Ettrick.” Concerning Laidlaw’s evidence, Colonel Elliot says not a word.

This copy of *Auld Maitland*, with the superscription outside—

MR. WILLIAM LAIDLAW,
BLACKHOUSE,

all in Hogg’s hand, is now at Abbotsford. We next have, through Carruthers using Laidlaw’s manuscript, an account of the arrival of Scott and Leyden at Blackhouse, of Laidlaw’s presentation of Hogg’s manuscript, which Scott read aloud, and of their surprise and delight. Scott was excited, so that his *burr* became very perceptible. [\[23a\]](#)

The time of year when Scott and Leyden visited Yarrow was not the *autumn* vacation of 1802, as Lockhart erroneously writes, [\[23b\]](#) but the *spring* vacation of 1802. The spring vacation, Mr. Macmath informs me, ran from 11th March to 12th May in 1802. In May, apparently, Scott having obtained the *Auld Maitland* MS. in the vernal vacation of the Court of Session, gave his account of his discovery to his friend Ellis (Lockhart does not date the letter, but wrongly puts it after the return to Edinburgh in November 1802).

Scott wrote thus:—"We" (John Leyden and himself) "have just concluded an excursion of two or three weeks through my jurisdiction of Selkirkshire, where, in defiance of mountains, rivers, and bogs, damp and dry, we have penetrated the very recesses of Ettrick Forest . . . I have . . . returned *loaded* with the treasures of oral tradition. The principal result of our inquiries has been a complete and perfect copy of "Maitland with his Auld Berd Graie," referred to by [Gawain] Douglas in his *Palice of Honour* (1503), along with John the Reef and other popular characters, and celebrated in the poems from the Maitland MS." (*circ.* 1575). You may guess the surprise of Leyden and myself when this was presented to us, copied down from the recitation of an old shepherd, by a country farmer . . . Many of the old words are retained, which neither the reciter nor the copyer understood. Such are the military engines, sowies, *springwalls* (springalds), and many others . . . " [\[24a\]](#)

That Scott got the ballad in spring 1802 is easily proved. On 10th April 1802, Joseph Ritson, the crabbed, ill-tempered, but meticulously accurate scholar, who thought that ballad-forging should be made a capital offence, wrote thus to Scott:—

"I have the pleasure of enclosing my copy of a very ancient poem, which appears to me to be the original of *The Wee Wee Man*, and which I learn from Mr. Ellis you are desirous to see." In Scott's letter to Ellis, just quoted, he says: "I have lately had from him" (Ritson) "*a copie* of 'Ye litel wee man,' of which I think I can make some use. In return, I have sent him a sight of *Auld Maitland*, the original MS . . . I wish him to see it *in puris naturalibus*." "The precaution here taken was very natural," says Lockhart, considering Ritson's temper and hatred of literary forgeries. Scott, when he wrote to Ellis, had received Ritson's *The Wee Wee Man* "lately": it was sent to him by Ritson on 10th April 1802. Scott had already, when he wrote to

Ellis, got “the original MS. of *Auld Maitland*” (now in Abbotsford Library). By 10th June 1802 Ritson wrote saying, “You may depend on my taking the utmost care of *Old Maitland*, and returning it in health and safety. I would not use the liberty of transcribing it into my manuscript copy of Mrs. Brown’s ballads, but if you will signify your permission, I shall be highly gratified.” ^[25] “Your ancient and curious ballad,” he styles the piece.

Thus Scott had *Auld Maitland* in May 1802; he sent the original MS. to Ritson; Ritson received it graciously; he had, on 10th April 1802, sent Scott another MS., *The Wee Wee Man*; and when Scott wrote to Ellis about his surprise at getting “a complete and perfect copy of Maitland,” he had but lately received *The Wee Wee Man*, sent by Ritson on 10th April 1802. He had made a spring, not an autumn, raid into the Forest.

We now know the external history of the ballad. Laidlaw, hearing his servant repeat some stanzas, asks Hogg for the full copy, which Hogg sends with a pedigree from which he never wavered. Auld Andrew Muir taught the song to Hogg’s mother and uncle. Hogg took it from his uncle’s recitation, and sent it, directed outside,

TO MR. WILLIAM LAIDLAW,
BLACKHOUSE,

and Laidlaw gave it to Scott, in March 12–May 12, 1802. But Scott, publishing the ballad in *The Minstrelsy* (1803), says it is given “as written down from the recitation of the mother of Mr. James Hogg, who sings, or rather chants, it with great animation” (manifestly he had heard the recitation which he describes).

It seems that Scott, before he wrote to Ellis in May 1802, had misgivings about the ballad. Says Carruthers, he “made another visit to Blackhouse for the purpose of getting Laidlaw as a guide to Ettrick,” being “curious to see the poetical shepherd.”

Laidlaw’s MS., used by Carruthers, describes the wild ride by the marshes at the head of the Loch of the Lowes, through the bogs on the knees of the hills, down a footpath to Ramseycleuch in Ettrick. They sent to Ettrick House for Hogg; Scott was surprised and pleased with James’s appearance.

They had a delightful evening: “the qualities of Hogg came out at every instant, and his unaffected simplicity and fearless frankness both surprised and pleased the Sheriff.” [\[26a\]](#) Next morning they visited Hogg and his mother at her cottage, and Hogg tells how the old lady recited *Auld Maitland*. Hogg gave the story in prose, with great vivacity and humour, in his *Domestic Manners of Sir Walter Scott* (1834).

In an earlier poetical address to Scott, congratulating him on his elevation to the baronetcy (1818), the Shepherd says—

When Maitland’s song first met your ear,
How the furl’d visage up did clear.
Beaming delight! though now a shade
Of doubt would darken into dread,
That some unskilled presumptuous arm
Had marred tradition’s mighty charm.
Scarce grew thy lurking dread the less,
Till she, the ancient Minstreless,
With fervid voice and kindling eye,
And wither’d arms waving on high,
Sung forth these words in eldritch shriek,
While tears stood on thy nut-brown cheek:
“Na, we are nane o’ the lads o’ France,
Nor e’er pretend to be;
We be three lads of fair Scotland,
Auld Maitland’s sons a’ three.”

(Stanza xliii. as printed. In Hogg’s MS. copy, given to Laidlaw there are two verbal differences, in lines 1 and 4.)

Then says Hogg—

Thy fist made all the table ring,
By —, sir, but that is the thing!

Hogg could not thus describe the scene in addressing Scott himself, in 1818, if his story were not true. It thus follows that his mother knew the sixty-five stanzas of the ballad by heart. Does any one believe that, as a

woman of seventy-two, she learned the poem to back Hogg's hoax? That he wrote the poem, and caused her to learn it by rote, so as to corroborate his imposture?

This is absurd.

But now comes the source of Colonel Elliot's theory of a conspiracy between Scott and Hogg, to forge a ballad and issue the forgery. Colonel Elliot knows scraps of a letter to Hogg of 30th June 1802. He has read parts, not bearing on the question, in Mr. Douglas's *Familiar Letters of Sir Walter Scott* (vol. i. pp. 12–15), and another scrap, in which Hogg says that "I am surprised to hear that *Auld Maitland* is suspected by some to be a modern forgery." This part of Hogg's letter of 30th June 1802 was published by Scott himself in the third volume of *The Minstrelsy* (April 1803).

Not having the context of the letter, Colonel Elliot seems to argue, "Scott says he got his first copy in autumn 1802" (Lockhart's mistake), "yet here are Hogg and Scott corresponding about the ballad long before autumn, in June 1802. This is very suspicious." I give what appears to be Colonel Elliot's line of reflection in my own words. He decides that, as early as June 1802, "Hogg" (in the Colonel's 'view'), "in the first instance, tried to palm off the ballad on Scott, and failed; and that then Scott palmed it off on the public, and succeeded."

This is all a mare's nest. Scott, in March-May 1802, had the whole of the ballad except one stanza, which Hogg sent to him on 30th June.

I now print, for the first time, the whole of Hogg's letter of 30th June, with its shrewd criticism on ballads, hitherto omitted, and I italicise the passage about *Auld Maitland*:—

ETTRICK HOUSE, *June 30.*

DEAR SIR,—I have been perusing your minstrelsy very diligently for a while past, and it being the first book I ever perused which was written by a person I had seen and conversed with, the consequence hath been to me a most sensible pleasure; for in fact it is the remarks and modern pieces that I have delighted most in, being as it were personally

acquainted with many of the modern pieces formerly. My mother is actually a living miscellany of old songs. I never believed that she had half so many until I came to a trial. There are some (*sic*) in your collection of which she hath not a part, and I should by this time had a great number written for your amusement, thinking them all of great antiquity and lost to posterity, had I not luckily lighted upon a collection of songs in two volumes, published by I know not who, in which I recognised about half-a-score of my mother's best songs, almost word for word. No doubt I was piqued, but it saved me much trouble, paper, and ink; for I am carefully avoiding anything which I have seen or heard of being in print, although I have no doubt that I shall err, being acquainted with almost no collections of that sort, but I am not afraid that you too will mistake. I am still at a loss with respect to some: such as the Battle of Flodden beginning, "From Spey to the Border," a long poetical piece on the battle of Bannockburn, I fear modern: The Battle of the Boyne, Young Bateman's Ghost, all of which, and others which I cannot mind, I could mostly recover for a few miles' travel were I certain they could be of any use concerning the above; and I might have mentioned May Cohn and a duel between two friends, Graham and Bewick, undoubtedly very old. You must give me information in your answer. I have already scraped together a considerable quantity—suspend your curiosity, Mr. Scott, you will see them when I see you, of which I am as impatient as you can be to see the songs for your life. But as I suppose you have no personal acquaintance in this parish, it would be presumption in me to expect that you will visit my cottage, but I will attend you in any part of the Forest if you will send me word. I am far from supposing that a person of your discernment,—d—n it, I'll blot out that, 'tis so like flattery. I say I don't think you would despise a shepherd's "humble cot an' hamely fare," as Burns hath it, yet though I would be extremely proud of a visit, yet hang me if I would know what to do wi' ye. I am surprised to find that the songs in your collection differ so widely from my mother's. Is Mr. Herd's MS. genuine? I suspect it. Jamie Telfer differs in many particulars. Johnny Armstrong of Gilnockie is another song altogether. I have seen a verse of my mother's way called Johny Armstrong's last good-night cited in the *Spectator*, and another in *Boswell's Journal*. It begins, "Is there ne'er a man in fair Scotland?"

Do you know if this is in print, Mr. Scott? In the Tale of Tomlin the whole of the interlude about the horse and the hawk is a distinct song altogether. ^[30a] Clerk Saunders is nearly the same with my mother's, until that stanza [xvi.] which ends, "was in the tower last night wi' me," then with another verse or two which are not in yours, ends Clerk Saunders. All the rest of the song in your edition is another song altogether, which my mother hath mostly likewise, and I am persuaded from the change in the stile that she is right, for it is scarce consistent with the forepart of the ballad. I have made several additions and variations out, to the printed songs, for your inspection, but only when they could be inserted without disjoining the songs as they are at present; to have written all the variations would scarcely be possible, and I thought would embarrass you exceedingly. *I have recovered another half verse of Old Maitlan, and have rhymed it thus—*

*Remember Fiery of the Scot
Hath cower'd aneath thy hand;
For ilka drap o' Maitlen's blood
I'll gie thee rigs o' land.—*

The two last lines only are original; you will easily perceive that they occur in the very place where we suspected a want. I am surprised to hear that this song is suspected by some to be a modern forgery; this will be best proved by most of the old people hereabouts having a great part of it by heart; many, indeed, are not aware of the manners of this place, it is but lately emerged from barbarity, and till this present age the poor illiterate people in these glens knew of no other entertainment in the long winter nights than in repeating and listening to these feats of their ancestors, which I believe to be handed down inviolate from father to son, for many generations, although no doubt, had a copy been taken of them at the end of every fifty years, there must have been some difference, which the repeaters would have insensibly fallen into merely by the change of terms in that period. I believe that it is thus that many very ancient songs have been modernised, which yet to a connoisseur will bear visible marks of antiquity. The Maitlen, for instance, exclusive of its mode of description, is all composed of words, which would mostly every one spell and pronounce in the very same dialect that was spoken some centuries ago.

Pardon, my dear Sir, the freedom I have taken in addressing you—it is my nature; and I could not resist the impulse of writing to you any longer. Let me hear from you as soon as this comes to your hand, and tell me when you will be in Ettrick Forest, and suffer me to subscribe myself, Sir, your most humble and affectionate servant,

JAMES HOGG.

In Scott's printed text of the ballad, two interpolations, of two lines each, are acknowledged in notes. They occur in stanzas vii., xlv., and are attributed to Hogg. In fact, Hogg sent one of them (vii.) to Laidlaw in his manuscript. The other he sent to Scott on 30th June 1802.

Colonel Elliot, in the spirit of the Higher Criticism (*chimæra bombinans in vacuo*), writes, [\[31a\]](#) "Few will doubt that the footnotes" (on these interpolations) "were inserted with the purpose of leading the public to think that Hogg made no other interpolations; but I am afraid I must go further than this and say that, since they were inserted on the editor's responsibility, the intention must have been to make it appear as if no other interpolations by any other hand had been inserted."

But no other interpolations by another hand *were* inserted! Some verbal emendations were made by Scott, but he never put in a stanza or two lines of his own.

Colonel Elliot provides us with six pages of the Higher Criticism. He knows how to distinguish between verses by Hogg, and verses by Scott! [\[32a\]](#) But, save when Scott puts one line, a ballad formula, where Hogg has another line, Scott makes no interpolations, and the ballad formula he probably took, with other things of no more importance, from Mrs. Hogg's recitation. Oh, Higher Criticism!

I now print the ballad as Hogg sent it to Laidlaw, between August 1801 and March 1802, in all probability.

[Back of Hogg's MS.: Mr. William Laidlaw, Blackhouse.]

OLD MAITLAND

A VERY ANTIENT SONG

THERE lived a king in southern land
King Edward hecht his name
Unwordily he wore the crown
Till fifty years was gane.

He had a sister's son o's ain
Was large o' blood and bane
And afterwards when he came up,
Young Edward hecht his name.

One day he came before the king,
And kneeld low on his knee
A boon a boon my good uncle,
I crave to ask of thee

“At our lang wars i' fair Scotland
I lang hae lang'd to be
If fifteen hunder wale wight men
You'll grant to ride wi' me.”

“Thou sal hae thae thou sal hae mae
I say it sickerly;
And I mysel an auld grey man
Arrayd your host sal see.”—

King Edward rade King Edward ran—
I wish him dool and pain!
Till he had fifteen hundred men
Assembled on the Tyne.
And twice as many at North Berwick
Was a' for battle bound

They lighted on the banks of Tweed
And blew their coals sae het
And fired the Merce and Tevidale
All in an evening late

As they far'd up o'er Lammormor
They burn'd baith tower and town

Until they came to a derksome house,
Some call it Leaders Town

Whae hauds this house young Edward crys,
Or whae gae'st ower to me
A grey haired knight set up his head
And cracked right crouselly

Of Scotlands King I haud my house
He pays me meat and fee
And I will keep my goud auld house
While my house will keep me

They laid their sowies to the wall
Wi' mony heavy peal
But he threw ower to them again
Baith piech and tar barille

With springs: wall stanes, and good of ern,
Among them fast he threw
Till mony of the Englishmen
About the wall he slew.

Full fifteen days that braid host lay
Sieging old Maitlen keen
Then they hae left him safe and hale
Within his strength o' stane

Then fifteen barks, all gaily good,
Met themen on a day,
Which they did lade with as much spoil
As they could bear away.

“England's our ain by heritage;
And whae can us gainstand,
When we hae conquerd fair Scotland
Wi' bow, buckler, and brande”—

Then they are on to th' land o' france,
Where auld King Edward lay,

Burning each town and castle strong
That ance cam in his way.

Untill he cam unto that town
Which some call Billop-Grace
There were old Maitlen's sons a' three
Learning at School alas

The eldest to the others said,
O see ye what I see
If a' be true yon standard says,
We're fatherless a' three

For Scotland's conquerd up and down
Landsmen we'll never be:
Now will you go my brethren two,
And try some jeopardy

Then they hae saddled two black horse,
Two black horse and a grey
And they are on to Edwardes host
Before the dawn of day

When they arriv'd before the host
They hover'd on the ley
Will you lend me our King's standard
To carry a little way

Where was thou bred where was thou born
Wherein in what country—
In the north of England I was born
What needed him to lie.

A knight me got a lady bare
I'm a squire of high renown
I well may bear't to any king,
That ever yet wore crown.

He ne'er came of an Englishman
Had sic an ee or bree

But thou art likest auld Maitlen
That ever I did see

But sic a gloom inon ae browhead
Grant's ne'er see again
For many of our men he slew
And many put to pain

When Maitlan heard his father's name,
An angry man was he
Then lifting up a gilt dagger
Hung low down by his knee

He stab'd the knight the standard bore,
He stabb'd him cruelly;
Then caught the standard by the neuk,
And fast away rade he.

Now is't na time brothers he cry'd
Now, is't na time to flee
Ay by my soothe they baith reply'd,
We'll bear you company

The youngest turn'd him in a path
And drew a burnish'd brand
And fifteen o' the foremost slew
Till back the lave did stand

He spurr'd the grey unto the path
Till baith her sides they bled
Grey! thou maun carry me away
Or my life lies in wed

The captain lookit ower the wa'
Before the break o day
There he beheld the three Scots lads
Pursued alongst the way

Pull up portculzies down draw briggs
My nephews are at hame

And they shall lodge wi' me to-night,
In spite of all England

Whene'er they came within the gate
They thrust their horse them frae
And took three lang spears in their hands,
Saying, here sal come nae mae

And they shott out and they shott in,
Till it was fairly day
When many of the Englishmen
About the draw brigg lay.

Then they hae yoked carts and wains
To ca' their dead away
And shot auld dykes aboon the lave
In gutters where they lay

The king in his pavilion door
Was heard aloud to say
Last night three o' the lads o' France
My standard stole away

Wi' a fause tale disguis'd they came
And wi' a fauser train
And to regain my gaye standard
These men were a' down slaine

It ill befits the youngest said
A crowned king to lie
But or that I taste meat and drink,
Reproved shall he be.

He went before King Edward straight
And kneel'd low on his knee
I wad hae leave my liege he said,
To speak a word wi' thee

The king he turn'd him round about
And wistna what to say

Quo' he, Man, thou's hae leave to speak
Though thou should speak a day.

You said that three young lads o' France,
Your standard stole away
Wi' a fause tale and fauser train,
And mony men did slay

But we are nane the lads o' France
Nor e'er pretend to be
We are three lads o' fair Scotland,
Auld Maitlen's sons a' three

Nor is there men in a your host,
Dare fight us three to three
Now by my sooth young Edward cry'd,
Weel fitted sall ye be!

Piercy sall with the eldest fight
And Ethert Lunn wi' thee
William of Lancastar the third
And bring your fourth to me

He clanked Piercy ovr the head
A deep wound and a sair
Till the best blood o' his body
Came rinnen ovr his hair.

Now I've slain one slay ye the two;
And that's good company
And if the two should slay ye baith,
Ye'se get na help frae me

But Ethert Lunn a baited bear
Had many battles seen
He set the youngest wonder sair,
Till the eldest he grew keen

I am nae king nor nae sic thing
My word it sanna stand

For Ethert shall a buffet bide,
Come he aneath my brand.

He clanked Ethert ovr the head,
A deep wound and a sair
Till a' the blood of his body
Came rinnen ovr his hair

Now I've slayne two slay ye the one;
Isna that gude company
And tho' the one should slay ye both
Ye'se get nae help o' me.

The twasome they hae slayn the one
They maul'd them cruelly
Then hang them ovr the drawbridge,
That a' the host might see

They rade their horse they ran their horse,
Then hover'd on the ley
We be three lads o' fair Scotland,
We fain wad fighting see

This boasting when young Edward heard,
To's uncle thus said he,
I'll take yon lad I'll bind yon lad,
And bring him bound to thee

But God forbid King Edward said
That ever thou should try
Three worthy leaders we hae lost,
And you the fourth shall be.

If thou wert hung ovr yon drawbrigg
Blythe wad I never be
But wi' the pole-axe in his hand,
Outower the bridge sprang he

The first stroke that young Edward gae
He struck wi might and main

He clove the Maitlen's helmet stout,
And near had pierced his brain.

When Matlen saw his ain blood fa,
An angry man was he
He let his weapon frae him fa'
And at his neck did flee

And thrice about he did him swing,
Till on the ground he light
Where he has halden young Edward
Tho' he was great in might

Now let him up, King Edward cry'd,
And let him come to me
And for the deed that ye hae done
Ye shal hae earldoms three

It's ne'er be said in France nor Ire
In Scotland when I'm hame
That Edward once was under me,
And yet wan up again

He stabb'd him thro and thro the hear
He maul'd him cruelly
Then hung him ower the drawbridge
Beside the other three

Now take from me that feather bed
Make me a bed o' strae
I wish I neer had seen this day
To mak my heart fu' wae

If I were once at London Tower,
Where I was wont to be
I never mair should gang frae hame,
Till borne on a bier-tree

At the end of his copy Hogg writes (probably of stanza vii.)—"You may insert the two following lines anywhere you think it needs them, or

substitute two better—

And marching south with curst Dunbar
A ready welcome found.”

II **WHAT IS AULD MAITLAND?**

Is *Auld Maitland* a sheer forgery by Hogg, or is it in any sense, and if so, in what sense, antique and traditional? That Hogg made the whole of it is to me incredible. He had told Laidlaw on 20th July 1801, that he would make no ballads on traditions without Scott’s permission, written in Scott’s hand. Moreover, how could he have any traditions about “Auld Maitland, his noble Sonnis three,” personages of the thirteenth and fourteenth centuries? Scott had read about them in poems of about 1580, but these poems then lay in crabbed manuscripts. Again, Hogg wrote in words (“springs, wall-stanes”) of whose meaning he had no idea; he took it as he heard it in recitation. Finally, the style is not that of Hogg when he attempts the ballad. Scott observed that “this ballad, notwithstanding its present appearance, has a claim to very high antiquity.” The language, except for a few technical terms, is modern, but what else could it be if handed down orally? The language of undoubted ballads is often more modern than that which was spoken in my boyhood in Ettrick Forest. As Sir Walter Scott remarked, a poem of 1570–1580, which he quotes from the Maitland MSS., “would run as smoothly, and appear as modern, as any verse in the ballad (with a few exceptions) if divested of its antique spelling.”

We now turn to the historical characters in the ballad.

Sir Richard Maitland of Lauder, or Thirlestane, says Scott, was already in his lands, and making donations to the Church in 1249. If, in 1296, forty-seven years later, he held his castle against Edward I., as in the ballad, he must have been a man of, say, seventy-five. By about 1574 his descendant, Sir Richard Maitland, was consoled for his family misfortunes (his famous son, Lethington, having died after the long siege of Edinburgh Castle, which he and Kirkcaldy of Grange held for Queen Mary), by a poet who reminded him that his ancestor, in the thirteenth century, lost all his sons

—“peerless pearls”—save one, “Burdallane.” The Sir Richard of 1575 has also one son left (John, the minister of James VI.). [\[41a\]](#)

From this evidence, in 1802 in MS. unpublished, and from other Maitland MSS., we learn that, in the sixteenth century, the Auld Maitland of the ballad was an eminent character in the legends of that period, and in the ballads of the people. [\[41b\]](#) His

Nobill sonnis three,
Ar sung in monie far countrie,
Albeit in rural rhyme.

Pinkerton published, in 1786, none of the pieces to which Scott refers in his extracts from the Maitland MSS. How, then, did Hogg, if Hogg forged the ballad, know of Maitland and his “three noble sons”? Except Colonel Elliot, to whose explanation we return, I am not aware that any critic has tried to answer this question.

It seems to me that if the *Ballad of Otterburne*, extant in 1550 in England, survived in Scottish memory till Herd’s fragment appeared in 1776, a tradition of Maitland, who was popular in the ballads of 1575, and known to Gawain Douglas seventy years earlier, may also have persisted. There is no impossibility.

Looking next at Scott’s *Auld Maitland* the story is that King Edward I. reigned for fifty years. He had a nephew Edward (an apocryphal person: such figures are common in ballads), who wished to take part in the invasion of Scotland. The English are repulsed by old Maitland from his “darksome house” on the Leader. The English, however, (stanza xv.) conquer Scotland, and join Edward I. in France. They besiege that town,

Which some call Billop-Grace (xviii.).

Here Maitland’s three sons are learning at school, as Scots often were educated in France. They see that Edward’s standard quarters the arms of France, and infer that he has conquered their country. They “will try some jeopardy.” Persuading the English that they are themselves Englishmen, they ask leave to carry the royal flag. The eldest is told that he is singularly

like Auld Maitland. In anger he stabs the standard-bearer, seizes the flag, and, with his brothers, spurs to Billop-Grace, where the French captain receives them. There is fighting at the gate. The King says that three disguised lads of France have stolen his flag. The Maitlands apparently heard of this; the youngest goes to Edward, and explains that they are Maitland's sons, and Scots; they challenge any three Englishmen; a thing in the manner of the period. The three Scots are victorious. Young Edward then challenges one of the dauntless three, who slays him. Edward wishes himself home at London Tower.

Such is the story. It is out of the regular line of ballad narrative, but it does not follow that, in the sixteenth century, some such tale was not told "in rural rhyme" about Maitland's "three noble sons." That it is not historically true is nothing, of course, and that it is not in the Scots of the thirteenth century is nothing.

Colonel Elliot asks, What in the ballad raised suspicion of forgery (in 1802–03)? The historical inaccuracies are common to all historical ballads. (In an English ballad known to me of 1578, Henry Darnley is "hanged on a tree"!)

Next, "there are occasional lines, and even stanzas, which jar in style to such a degree that they must have been written by two separate hands."

But this, also, is a common feature. In "Professor Child and the Ballad," Mr. W. M. Hart gives a list of Professor Child's notes on the multiplicity of hands, which he, and every critic, detect in some ballads with a genuinely antique substratum. [\[44a\]](#)

Colonel Elliot quotes, as in his opinion the best, stanzas viii., ix., x., xi., while he thinks xv., xviii. the worst. I give these stanzas—

VIII.

They lighted on the banks o' Tweed,
And blew their coals sae het,
And fired the Merse and Teviotdale,
All in an evening late.

IX.

As they fared up o'er Lammermoor,
They burned baith up and down,
Until they came to a darksome house,
Some call it Leader Town.

X.

"Wha hauds this house?" young Edward cried,
"Or wha gi'est ower to me?"
A grey-hair'd knight set up his head,
And crackit right crouselly:

XI.

"Of Scotland's king I haud my house,
He pays me meat and fee;
And I will keep my guid auld house,
While my house will keep me."

I cannot, I admit, find any fault with these stanzas: cannot see any reason why they should not be traditional.

Then Colonel Elliot cites, as the worst—

XV.

Then fifteen barks, all gaily good,
Met them upon a day,
Which they did lade with as much spoil
As they could take away.

XVIII.

Until we came unto that town
Which some call Billop-Grace;
There were Auld Maitland's sons, a' three,
Learning at school, alas!

Now, if I venture to differ from Colonel Elliot here, I may plead that I am practised in the art of ballad-faking, and can produce high testimonials of skill! To me stanzas xv., xviii. seem to differ much from viii.–xi., but not in such a way as Hogg would have differed, had he made them. Hogg's error would have lain, as Scott's did, in being, as Scott said of Mrs. Hemans, *too poetical*.

Neither Hogg nor Scott, I think, was crafty enough to imitate the prosaic drawl of the printed broadside ballad, or the feeble interpolations with which the "gangrel scrape-gut," or *bänkelsänger*, supplied gaps in his memory. The modern complete ballad-faker *would* introduce such abject verses, but Scott and Hogg desired to decorate, not to debase, ballads with which they intermeddled, and we track them by their modern romantic touch when they interpolate. I take it, for this reason, that Hogg did not write stanzas xv., xviii. It was hardly in nature for Hogg, if he knew Ville de Grace in Normandy (a thing not very probable), to invent "Billop-Grace" as a popular corruption of the name—and a popular corruption it is, I think. Probably the original maker of this stanza wrote, in line 4, "alace," an old spelling—not "alas"—to rhyme with "grace."

Colonel Elliot then assigns xv., xviii. as most likely of all to be by Hogg. On that I have given my opinion, with my reasons.

These verses, with xviii., lead us to France, and whereas Scott here suspects that some verses have been lost (see his note to stanza xviii.), Colonel Elliot suspects that the stanzas relating to France have been interpolated. But the French scenes occupy the whole poem from xvi. to lxxv., the end.

What, if Hogg were the forger, were his sources? He *may* have known Douglas's *Palice of Honour*, which, of course, existed in print, with its mention of Maitland's grey beard. But how did he know Maitland's "three noble sons," in 1801–1802, lying unsunned in the Maitland MSS.?

This is a point which critics of *Auld Maitland* studiously ignore, yet it is the essential point. How did the Shepherd know about the three young Maitlands, whose existence, in legend, is only revealed to us through a manuscript unpublished in 1802? Colonel Elliot does not evade the point. "We may be sure," he says, that Leyden, before 1802, knew Hogg, and Hogg might have obtained from him sufficient information to enable him to

compose the ballad. ^[47a] But it was from Laidlaw, not from Leyden, that Scott, after receiving his first copy at Blackhouse, in spring 1802, obtained Hogg's address. ^[47b] There is no hint that before spring 1802 Leyden ever saw Hogg. Had he known him, and his ballad-lore, he would have brought him and Scott together. In 1801–02, Leyden was very busy in Edinburgh helping Scott to edit *Sir Tristram*, copying *Arthour*, seeking for an East India appointment, and going into society. Scott's letters prove all this. ^[47c]

That Hogg, in 1802, was very capable of writing a ballad, I admit; also that, through Blind Harry's *Wallace*, he may have known all about "sowies," and "portculize," and *springwalls*, or *springald's*, or *springalls*, mediæval *balistas* for throwing heavy stones and darts. But Hogg did not know or guess what a *springwall* was. In his stanza xiii. (in the MS. given to Laidlaw), Hogg wrote—

With springs; wall stanes, and good o'ern
Among them fast he threw.

Scott saw the real meaning of this nonsense, and read—

With springalds, stones, and gads o' airn.

In his preface he says that many words in the ballad, "which the reciters have retained without understanding them, still preserve traces of their antiquity." For instance, *springalls*, corruptedly pronounced *springwalls*. Hogg, hearing the pronunciation, and not understanding, wrote, "with springs: wall stanes." A leader would not throw "wall stanes" till he had exhausted his ammunition. Hogg heard "with springwalls stones, he threw," and wrote it, "with springs: wall stones he threw."

Hogg could not know of Auld Maitland "and his three noble sons" except through an informant familiar with the Maitland MSS. in Edinburgh University Library. On the theory of a conspiracy to forge, Scott taught him, but that theory is crushed.

Hogg says, in *Domestic Manners of Sir Walter Scott*, that when his mother met Scott she told him that her brother and she learned the ballad from auld Andrew Muir, and he from "auld Babby Mettlin," housekeeper of the first

(“Anderson”) laird of Tushielaw. This first Anderson, laird of Tushielaw, reigned from 1688 to 1721 (?) or 1724. [\[48a\]](#) Hogg’s mother was born in 1730, and was only one remove—filled up by Andrew Muir—from Babby, who was “ither than a gude yin,” and knew many songs. Does any one think Hogg crafty enough to have invented Babby Maitland as the source of a song about the Maitlands, and to have introduced her into his narrative in 1834? I conjecture that this Maitland woman knew a Maitland song, modernised in time, and perhaps copied out and emended by one of the Maitland family, possibly one of the descendants of Lethington. We know that, under James I., about 1620, Lethington’s impoverished son, James, had several children; and that Lauderdale was still supporting them (or *their* children) during the Restoration. Only a century before, ballads on the Maitlands had certainly been popular, and there is nothing impossible in the suggestion that one such ballad survived in the Lauderdale or Lethington family, and came through Babby Maitland to Andrew Muir, then to Hogg’s mother, to Hogg, and to Scott.

If a manuscript copy ever existed, and was Babby’s ultimate source, it would be of the late seventeenth century. That is the ascertained date of the oldest known MS. of *The Outlaw Murray*, as is proved from an allusion in a note appended to a copy, referring to a Judge of Session, Lord Philiphaugh, as then alive. The copy was of 1689–1702. [\[49a\]](#)

Granting a MS. of *Auld Maitland* existing in any branch of the Maitland family in 1680–1700, Babby Mettlin’s knowledge of the ballad, and its few modernisms, are explained.

As Lockhart truly says, Hogg “was the most extraordinary man that ever wore the maud of a shepherd.” He had none of Burns’ education. In 1802 he was young, and ignorant of cities, and always was innocent of research in the crabbed MSS. of the sixteenth century. Yet he gets at legendary persons known to us only through these MSS. He makes a ballad named *Auld Maitland* about them. Through him a farm-lass at Blackhouse acquires some stanzas which Laidlaw copies. In a fortnight Hogg sends Laidlaw the whole ballad, with the pedigree—his uncle, his mother, their father, and old Andrew Muir, servant to the famous Rev. Mr. Boston of Ettrick. The copy takes in Scott and Leyden. Later, Ritson makes no

objection. Mrs. Hogg recites it to Scott, and, according to Hogg, gives a casual “auld Babby Maitland” as the original source.

Is the whole fraud conceivable? Hogg, we must believe, puts in two stanzas (xv., xviii.), of the lowliest order of printed stall-copy or “gangrel scrape-gut” style, and the same with intent to deceive. He introduces “Billop-Grace” as a deceptive popular corruption of *Ville de Grace*. This is far beyond any craft that I have found in the most artful modern “fakers.” One stanza (xlix.)—

But Ethert Lunn, a baited bear,
Had many battles seen—

seems to me very recent, whoever made it. Scott, in lxii., gives a variant of “some reciters,” for “That Edward once lay under me,” they read “That Englishman lay under me.” This, if a false story, was an example of an art more delicate than Scott elsewhere exhibits.

One does not know what Professor Child would have said to my arguments. He never gave a criticism in detail of the ballad and of the circumstances in which Scott acquired it. A man most reasonable, most open to conviction, he would, I think, have confessed his perplexity.

Scott did not interpolate a single stanza, even where, as Hogg wrote, he suspected a lacuna in the text. He neither cut out nor improved the cryingly modern stanzas. He kept them, as he kept several stanzas in *Tamlane*, which, so he told Laidlaw, were obviously recent, but were in a copy which he procured through Lady Dalkeith. [\[51a\]](#)

By neither adding to nor subtracting from his MS. copy of *Auld Maitland*, Scott proved, I think, his respect for a poem which, in its primal form, he believed to be very ancient. We know, at all events, that ballads on the Maitland heroes were current about 1580. So, late in the sixteenth century, were the ballads quoted by Hume of Godscroft, on the murder of the Knight of Liddesdale (1354), the murder of the young Earl of Douglas in Edinburgh Castle (1440), and the battle of Otterburn. Of these three, only *Otterburne* was recovered by Herd, published in 1776. The other two are lost; and there is no *prima facie* reason why a Maitland ballad, of the sort

current in 1580, should not, in favourable circumstances, have survived till 1802.

As regards the Shepherd's ideas of honesty in ballad-collecting at this early period, I have quoted his letter to Laidlaw of 20th July 1802.

Again, in the case of his text from recitation of the *Ballad of Otterburne* (published by Scott in *The Minstrelsy* of 1806), he gave the Sheriff a full account of his mode of handling his materials, and Scott could get more minute details by questioning him.

To this text of *Otterburne*, freely attacked by Colonel Elliot, in apparent ignorance, as before, of the published facts of the case, and of the manuscript, we next turn our attention. In the meantime, Scott no more conspired to forge *Auld Maitland* than he conspired to forge the Pentateuch. That Hogg did not forge *Auld Maitland* I think I have made as nearly certain as anything in this region can be. I think that the results are a lesson to professors of the Higher Criticism of Homer.

THE BALLAD OF OTTERBURNE

SCOTT's version of the *Ballad of Otterburne*, as given first in *The Minstrelsy* of 1806, comes under Colonel Elliot's most severe censure. He concludes in favour of "the view that it consists partly of stanzas from Percy's *Reliques*, which have undergone emendations calculated to disguise the source from which they came, partly of stanzas of modern fabrication, and partly of a very few stanzas and lines from Herd's version" (1776). [\[53a\]](#)

As a matter of fact we know, though Colonel Elliot does not, the whole process of construction of the *Otterburne* in *The Minstrelsy* of 1806. Professor Child published all the texts with a letter. [\[53b\]](#) It is a pity that Colonel Elliot overlooks facts in favour of conjecture. Concerning historical facts he is not more thorough in research. The story, in Percy's *Reliques*, of the slaying of Douglas by Percy, "is, so far as I know, supported neither by history nor by tradition." [\[53c\]](#) If unfamiliar with the English chroniclers (in Latin) of the end of the fourteenth century, Colonel Elliot could find them cited by Professor Child. Knyghton, Walsingham, and the continuator of Higden (Malverne), all assert that Percy killed Douglas with his own hand. [\[54a\]](#) The English ballad of *Otterburne* (in MS. of about 1550) gives this version of Douglas's death. It is erroneous. Froissart, a contemporary, had accounts of the battle from combatants, both English and Scottish. Douglas, fighting in the front of the van, on a moonlight night, was slain by three lance-wounds received in the mellay. The English knew not whom they had slain.

The interesting point is that, while the Scottish ballads give either the English version of Percy's death (in *Minstrelsy*, 1806) or another account mentioned by Hume of Godscroft (*circ.* 1610), that he was slain by one of his own men, the Scottish versions are *all* deeply affected in an important point by Froissart's contemporary narrative, which has not affected the

English versions. [\[54b\]](#) The point is that the death of Douglas was by his order concealed from both parties.

When both the English version in Percy's *Reliques* (from a MS. of about 1550), and Scott's version of 1806, mention a "challenge to battle" between Percy and Douglas, Colonel Elliot calls this incident "probably purely fanciful and imaginary," and suspects Scott's version of being made up and altered from the English text. But the challenge which resulted in the battle of Otterburn is not fanciful and imaginary!

It is mentioned by Froissart. Douglas, he says, took Percy's pennon in an encounter under Newcastle. Percy vowed that Douglas would never carry the pennon out of Northumberland; Douglas challenged him to come and take it from his tent door that night; but Percy was constrained not to accept the challenge. The Scots then marched homewards, but Douglas insisted on besieging Otterburn Castle; here he passed some days on purpose to give Percy a chance of a fight; Percy's force surprised the Scots; they were warned, as in the ballads, suddenly, by a man who galloped up; the fight began; and so on.

Now Herd's version says nothing of Douglas at Newcastle; the whole scene is at Otterburn. On the other hand, Charles Kirkpatrick Sharpe's MS. text *did* bring Douglas to Newcastle. Of this Colonel Elliot says nothing. The English version says *nothing of Percy's loss of his pennon to Douglas* (nor does Sharpe's), and gives the challenge and tryst. Scott's version says nothing of Percy's pennon, but Douglas takes Percy's sword and vows to carry it home. Percy's challenge, in the English version, is accompanied by a gross absurdity. He bids Douglas wait at Otterburn, where, *pour tout potage* to an army absurdly stated at 40,000 men, Percy suggests venison and pheasants! In the Scottish version Percy offers tryst at Otterburn. Douglas answers that, though Otterburn has no supplies—nothing but deer and wild birds—he will there tarry for Percy. This is chivalrous, and, in Scott's version, Douglas understands war. In the English version Percy does not. (To these facts I return, giving more details.) Colonel Elliot supposes some one (Scott, I daresay) to have taken Percy's,—the English version,—altered it to taste, concealed the alterations, as in this part of the challenge, by inverting the speeches and writing new stanzas of the fight at

Otterburn, used a very little of Herd (which is true), and inserted modern stanzas.

Now, first, as regards pilfering from the English version, that version, and Herd's undisputed version, have undeniably a common source. Neither, as it stands, is "original"; of an *original* contemporary Otterburn ballad we have no trace. By 1550, when such ballads were certainly current both in England and Scotland, they were late, confused by tradition, and, of what we possess, say Herd's, and the English MS. of 1550, all were interblended.

The Scots ballad version, known to Hume of Godscroft (1610), may have been taken from the English, and altered, as Child thought, or the English, as Motherwell maintained, may have been borrowed from the Scots, and altered. One or the other process undeniably occurred; the second poet, who made the changes, introduced the events most favourable to his country, and left out the less favourable. By Scott's time, or Herd's, the versions were much degraded through decay of memory, bad penny broadsides (lost), and uneducated reciters. Herd's version has forgotten the historic affair of the capture of Percy's pennon (and of the whole movement on Newcastle, preserved in Sharpe's and Scott's); Scott's remembers the encounter at Newcastle, forgets the pennon, and substitutes the capture by Douglas of Percy's sword. The Englishman deliberately omits the capture of the pennon. The Scots version (here altered by Sir Walter) makes Percy wound Douglas at Otterburn—

Till backward he did flee.

Now Colonel Elliot has no right, I conceive, to argue that this Scots version, with the Newcastle incident, the captured sword, the challenge, the "backward flight" of Douglas, were introduced by a modern (Scott?) who was deliberately "faking" the English version. There is no reason why tradition should *not* have retained historical incidents in the Scottish form; it is a mere assumption that a modern borrowed and travestied these incidents from Percy's *Reliques*. We possess Hogg's *unedited* original of Scott's version of 1806 (an original MS. never hinted at by Colonel Elliot), and it retains clear traces of being contaminated with a version of *The Huntiss of Chevet*, popular in 1459, as we read in *The Complaynte of Scotland* of that date. There is also an old English version of *The Hunting of the Cheviot*

(1550 or later, Bodleian Library). The *unedited* text of Scott's *Otterburne* then contained traces of *The Huntiss of Chevet*; the two were mixed in popular memory. In short, Scott's text, manipulated slightly by him in a way which I shall describe, was *a thing surviving in popular memory*: how confusedly will be explained.

The differences between the English version of 1550 and the Scots (collected for Scott by Hogg), are of old standing. I am not sure that there was not, before 1550, a Scottish ballad, which the English ballad-monger of that date annexed and altered. The English version of 1550 is not "popular"; it is the work of a humble literary man.

The English is a very long ballad, in seventy quatrains; it greatly exaggerates the number of the Scots engaged (40,000), and it is the work of a professional author who uses the stereotyped prosaic stopgaps of the cheap hack—

I tell you withouten dread,

is his favourite phrase, and he cites historical authority—

The cronykle wyll not layne (lie).

Scottish ballads do not appeal to chroniclers! A patriotic and imbecile effort is made by the Englishman to represent Percy as captured, indeed, but released without ransom—

There was then a Scottysh prisoner tayne,
Sir Hew Montgomery was his name;
For sooth as I yow saye,
He borrowed the Persey home agayne.

This is obscure, and in any case false. Percy *was* taken, and towards his ransom Richard II. paid £3000. [\[59a\]](#)

It may be well to quote the openings of each ballad, English and Scots.

ENGLISH (1550)

I.

It fell about the Lammas tyde,
When husbands win their hay,
The doughty Douglas bound him to ride,
In England to take a prey.

II.

The Earl of Fife, withouten strife,
He bound him over Solway;
The great would ever together ride
That race they may rue for aye.

III.

Over Hoppertop hill they came in,
And so down by Rodcliff crag,
Upon Green Linton they lighted down,
Stirring many a stag.

IV.

And boldly brent Northumberland,
And harried many a town,
They did our Englishmen great wrong,
To battle that were not boune.

V.

Then spake a berne upon the bent . . .

SCOTTISH, HERD (1776)

I.

It fell and about the Lammas time,
When hushandmen do win their hay;
Earl Douglas is to the English woods,
And a' with him to fetch a prey.

II.

He has chosen the Lindsays light,
With them the gallant Gordons gay;
And the Earl of Fyfe, withouten strife,
And Hugh Montgomery upon a grey.

(*The last line is obviously a reciter's stopgap.*)

III.

They have taken Northumberland,
And sae hae they *the north shire*,
And the Otterdale they hae burned hale,
And set it a' into fire.

IV.

Out then spak a bonny boy;

Manifestly these copies, so far, are not independent. But now Herd's copy begins to vary much from the English.

In both ballads a boy or "berne" speaks up. In the English he recommends to the Scots an attack on Newcastle; in the Scots he announces the approach of an English host. Douglas promises to reward the boy if his tale be true, to hang him if it be false. *The scene is Otterburn*. The boy stabs Douglas, in a stanza which is a common ballad formula of frequent occurrence—

The boy's taen out his little pen knife,
That hanget low down by his gare,
And he gaed Earl Douglas a deadly wound,
Alack! a deep wound and a sare.

Douglas then says to Sir Hugh Montgomery—

Take *thou* the vanguard of the three,
And bury me at yon bracken bush,
That stands upon yon lilly lea. (Herd, 4–8.)

Hume of Godscroft (about 1610), author of the *History of the Douglasses*, was fond of quoting ballads. He gives a form of the first verse in *Otterburn* which is common to Herd and the English copy. He says that, according to some, Douglas was treacherously slain by one of his own men whom he had offended. “But this narration is not so probable,” and the fact is fairly meaningless in Herd’s fragment (the boy has no motive for stabbing Douglas, for if his report is true, he will be rewarded). The deed is probably based on the tradition which Godscroft thought “less probable,”—the treacherous murder of the Earl.

In the English ballad, Douglas marches on Newcastle, where Percy, without fighting, makes a tryst to meet and combat him at Otterburn, on his way home from Newcastle to Scotland. Thither Douglas goes, and is warned by a Scottish knight of Percy’s approach: as in Herd, he is sceptical, but is convinced by facts. (This warning of Douglas by a scout who gallops up is narrated by Froissart, from witnesses engaged in the battle.) After various incidents, Percy and Douglas encounter each other, and Douglas is slain. After a desperate fight, Sir Hugh Montgomery, a prisoner of the English,

Borrowed the Percy home again.

This is absurd. The Scots fought on, took Percy, and won the day. Walsingham, the contemporary English chronicler (in Latin), says that Percy slew Douglas, so do Knyghton and the continuator of Higden.

Meanwhile we observe that the English ballad says nothing of Douglas’s chivalrous fortitude, and soldier-like desire to have his death concealed. Here every Scottish version follows Froissart. In Herd’s fragment, Montgomery now attacks Percy, and bids him “yield thee to yon bracken bush,” where the dead Douglas’s body lies concealed. Percy does yield—to Sir Hugh Montgomery. The fragment has but fourteen stanzas.

In 1802, Scott, correcting by another MS., published Herd’s copy. In 1806 he gave another version, for “fortunately two copies have since been obtained from the recitation of old persons residing at the head of Ettrick Forest.” [\[62a\]](#)

Colonel Elliot devotes a long digression to the trivial value of recitations, so styled, [\[62b\]](#) and gives his suggestions about the copy being made up from the *Reliques*. When Scott's copy of 1806 agrees with the English version, Colonel Elliot surmises that a modern person, familiar with the English, has written the coincident verses in *with differences*. Percy and Douglas, for example, change speeches, each saying what, in the English, the other said in substance, not in the actual words. When Scott's version touches on an incident known in history, but not given in the English version, the encounter between Douglas and Percy at Newcastle (Scott, vii., viii.), Colonel Elliot suspects the interpolator (and well he may, for the verses are mawkish and modern, not earlier than the eighteenth century imitations or *remaniements* which occur in many ballads traditional in essence).

So Colonel Elliot says, "We are not told, either in *The Minstrelsy* or in any of Scott's works or writings, who the reciters were, and who the transcribers were." [\[63a\]](#) We very seldom are told by Scott who the reciters were and who the transcribers, but our critic's information is here mournfully limited—by his own lack of study. Colonel Elliot goes on to criticise a very curious feature in Scott's version of 1806, and finds certain lines "beautiful" but "without a note of antiquity," that he can detect, while the sentiment "is hardly of the kind met with in old ballads."

To understand the position we must remember that, *in the English*, Percy and Douglas fight each other thus (1.)—

The Percy and the Douglas met,
That either of other was fain,
They swapped together while that they sweat,
With swords of fine Collayne. (Cologne steel.)

Douglas bids Percy yield, but Percy slays Douglas (as in Walsingham's and other contemporary chronicles, stanzas li.–lvi.). The Scottish losses are then enumerated (only eighteen Scots were left alive!), and stanza lix. runs

—

This fray began at Otterburn
Between the night and the day.

There the Douglas lost his life,
And the Percy was led away.

Herd ends—

This deed was done at Otterburn,
About the breaking of the day,
Earl Douglas was buried at the bracken bush,
And Percy led captive away.

Manifestly, either the maker of Herd's version knew the English, and altered at pleasure, or the Englishman knew a Scots version, and altered at pleasure. The perversion is of ancient standing, undeniably. But when Scott's original text exhibits the same phenomena of perversion, in a part of the ballad missing in Herd's brief lay, Colonel Elliot supposes that *now* the exchanges are by a modern ballad-forgery, shall we say Sir Walter? By Sir Walter they certainly are *not*! One tiny hint of Scots originality is dubious. In the English, and in all Scots versions, men "win their hay" at Lammastide. In Scotland the hay harvest is often much later. But if the English ballad be *Northumbrian*, little can be made out of that proof of Scottish origin. If the English version be a southern version (for the minstrel is a professional), then Lammastide for hay-making is borrowed from the Scots.

The Scots version (Herd's) insists on Douglas's burial "by the bracken bush," to which Montgomery bids Percy surrender. This is obviously done to hide his body and keep his death secret from both parties, *as in Froissart he bids his friends do*. The verse of the English (l.) on the fight between Douglas and Percy, is borrowed by, or is borrowed from, the Scottish stanza (ix.) in Herd, where Sir Hugh Montgomery fights Percy.

Then Percy and Montgomery met,
And weel a wot they warna fain;
They swaped swords, and they twa swat,
And ay the blood ran down between.

The Persses and the Mongomry met,

as quoted, is already familiar in *The Complaynte of Scotland* (about 1549), and this line is not in the English ballad. So far it seems as if the English balladist borrowed the scene from a Scots version, and perverted it into a description of a fight, between Percy, who wins, and Douglas—in place of the Scots version, the victory over Percy of Sir Hugh Montgomery.

This transference of incidents in the English and Scottish ballads is a phenomenon which we are to meet again in the ballad of *Jamie Telfer of the Fair Dodhead*. One “maker” or the other has, in old times, pirated and perverted the ballad of another “maker.”

SCOTT'S TRADITIONAL COPY AND HOW HE EDITED IT

As early as December 1802–January 1803, Scott was “so anxious to have a complete Scottish *Otterburn* that I will omit the ballad entirely in the first volume (of 1803), hoping to recover it in time for insertion in the third.”

[\[67a\]](#)

The letter is undated, but is determined by Scott's expressed interest “about the Tushielaw lines, which, from what you mention, must be worth recovering.” In a letter (Abbotsford MSS.) from Hogg to Scott (marked in copy, “January 7, 1803”) Hogg encloses “the Tushielaw lines,” which were popular in Ettrick, but were verses of the eighteenth century. They were orally repeated, but literary in origin.

Scott, who wanted “a complete Scottish *Otterburn*” in winter 1802, did not sit down and make one. He waited till he got a text from Hogg, in 1805, and published an edited version in 1806.

Scott's published stanza i. is Herd's stanza i., with slight verbal changes taken from the Hogg MS. text of 1805. (?) Hogg's MS. and Scott, in stanza ii., give Herd's lines on the Lindsays and Gordons, adding the Grahams, and, in place of Herd's

The Earl of Fife,
And Sir Hugh Montgomery upon a grey,

they end thus—

But the Jardines wald not wi' him ride,
And they rue it to this day.

This is from Hogg's copy; it is a natural Border variant. No Earl of Fife is named, but a reproach to a Border clan is conveyed.

For Herd's iii. (they take Northumberland, and burn "the North shire," and the Otter dale), Hogg's reciters gave—

And he has burned the dales o' Tyne,
And part o' *Almonshire*,
And three good towers in Roxburgh fells,
He left them all on fire.

Hogg, in his letter accompanying his copy, says that "Almonshire" may stand for the "Bamborowshire" of the English vi., but that he leaves in "Almonshire," as both reciters insist on it. Scott printed "Bambroughshire," as in the English version (vi.).

Now here is proof that Hogg had a copy, from reciters—a copy which he could not understand. "Almonshire" is "Alneshire," or "Alnwickshire," where is the Percy's Alnwick Castle. In Froissart the Scots burn and waste the region of Alneshire, all round Alnwick, but the Earl of Northumberland holds out in the castle, unattacked, and sends his sons, Henry and Ralph Percy, to Newcastle to gather forces, and take the retreating Scots between two fires, Newcastle and Alnwick. But the Scots were not such poor strategists as to return by the way they had come. In a skirmish or joust at Newcastle, says Froissart, Douglas captured Percy's lance and pennon, with his blazon of arms, and vowed that he would set it up over his castle of Dalkeith. Percy replied that he would never carry it out of England. To give Percy a chivalrous chance of recovering his pennon and making good his word, Douglas insists on waiting at Otterburn to besiege the castle there; and he is taken by surprise (as in the ballads) when a mounted man brings news of Percy's approach. No tryst is made by Percy and Douglas *at Otterburn* in Froissart; Douglas merely tarried there by the courtesy of Scotland.

In Hogg's version we have a reason why Douglas should tarry at Otterburn; in the English ballad we have none very definite. No captured pennon of Percy's is mentioned, no encounter of the heroes "at the barriers" of Newcastle. Percy, from the castle wall, merely threatens Douglas vaguely;

Douglas says, “Where will you meet me?” and Percy appoints Otterburn as we said. He makes the absurd remark that, by way of supplies (for 40,000 men), Douglas will find abundance of pheasants and red deer. [\[69a\]](#)

We see that the English balladist is an unwarlike literary hack. The author of the Ettrick version knew better the nature of war, as we shall see, and his Douglas objects to Otterburn as a place destitute of supplies; nothing is there but wild beasts and birds. If the original poem is the sensible poem, the Scott version is the original which the English hath perverted.

In Hogg, Douglas jousts with Percy at Newcastle, and gives him a fall. Then come two verses (viii.–ix.). The second is especially modern and mawkish—

But O how pale his lady look’d,
Frae off the castle wa’,
When down before the Scottish spear
She saw brave Percy fa’!
How pale and wan his lady look’d,
Frae off the castle hieght,
When she beheld her Percy yield
To doughty Douglas’ might.

Colonel Elliot asks, “Can any one believe that these stanzas are really ancient and have come down orally through many generations?” [\[70a\]](#)

Certainly not! But Colonel Elliot does not allow for the fact, insisted on by Professor Child, that traditional ballads, from the sixteenth to the eighteenth centuries, were often printed on broad-sheets as edited by the cheapest broadside-vendors’ hacks; that the hacks interpolated and messed their originals; and that, after the broadside was worn out, lost, or burned, oral memory kept it alive in tradition. For examples of this process we have only to look at *William’s Ghost* in Herd’s copy of 1776. This is a traditional ballad; it is included in Scott’s *Clerk Saunders*, but, as Hogg told him, is a quite distinct song. In Herd’s copy it ends thus—

“Oh, stay, my only true love, stay,”
The constant Marg’ret cry’d;

Wan grew her cheeks, she closed her eyes,
Stretched her soft limbs, and dy'd.

Let *this* get into tradition, and be taken down from recitation, and the ballad will be denounced as modern. But it is essentially ancient.

These two modern stanzas, in Hogg's copy, are rather too bad for Hogg's making; and I do not know whether they are his (he practically says they are not, we shall see), or whether they are remembered by reciters from a stall-copy of the period of Lady Wardlaw's *Hardyknute*.

After that, Hogg's copy becomes more natural. Douglas says to the discomfited Percy (x.)—

Had we twa been upon the green,
And never an eye to see,
I should hae had ye flesh and fell,
But your sword shall gae wi' me.

That rings true! Moreover, had either Hogg or Scott tampered here (Scott excised), either would have made Douglas carry off—not Percy's *sword*, but the historic captured *pennon* of Percy. Scott really could not have resisted the temptation had he been interpolating *à son dévis*.

But your *pennon* shall gae wi' me!

It was easy to write in that!

Percy had challenged Douglas thus—

But gae ye up to Otterburn,
And there wait days three (xi.),

as in the English (xiii.). In the English, Percy, we saw, promises game enough there; in Hogg, Douglas demurs (xii., xiii., xiv.). There are no supplies at Otterburn, he says—

To feed my men and me.

The deer rins wild frae dale to dale,
The birds fly wild frae tree to tree,
And there is neither bread nor kale,
To fend my men and me.

These seem to me sound true ballad lines, like—

My hounds may a' rin masterless
My hawks may fly frae tree to tree,

in Child's variant of *Young Beichan*. The speakers, we see, are "inverted." Percy, in the English, promises Douglas's men pheasants—absurd provision for the army of 40,000 men of the English ballad. In the Ettrick text Douglas says that there are no supplies, merely *feræ naturæ*, but he will wait at Otterburn to give Percy his chance.

Colonel Elliot takes the inversion of parts as a proof of modern pilfering and deliberate change to hide the theft; at least he mentions them, and the "prettier verses," with a note of exclamation (!). [\[73a\]](#) But there are, we repeat, similar inversions in the English and in Herd's old copy, and nobody says that Scott or Hogg or any modern faker made the inversions in Herd's text. The differences and inversions in the English and in Herd are very ancient; by 1550 "the Percy and the Montgomery met," in the line quoted in *The Complaynte of Scotland*. At about the same period (1550) it was the Percy and the Douglas who met, in the English version. Manifestly there pre-existed, by 1550, an old ballad, which either a Scot then perverted from the English text, or an Englishman from the Scots. Thus the inversions in the Ettrick and English version need not be due (they are not due) to a *modern* "faker."

In the Hogg MS. (xxiii.), Percy wounds Douglas "till backwards he did flee." Hogg was too good a Scot to interpolate the flight of Douglas; and Scott was so good a Scot that—what do you suppose he did?—he excised "till backwards he did flee" from Hogg's text, and inserted "that he fell to the ground" *from the English text*!

In the Hogg MS. (xviii., xix.), in Scott xvii., xviii., Douglas, at Otterburn, is roused from sleep by his page with news of Percy's approach. Douglas

says that the page lies (compare Herd, where Douglas doubts the page)—

For Percy hadna' men yestreen
To dight my men and me.

There is nothing in this to surprise any one who knows the innumerable variants in traditional ballads. But now comes in a very curious variation (Hogg MS. xx., Scott, xix.). Douglas says (Hogg MS. xx.)—

But I have seen a dreary dream
Beyond the Isle o' Skye,
I saw a dead man won the fight,
And I think that man was I.

Here is something not in Herd, and as remote from the manner of the English poet, with his

The Chronicle will not lie,

as Heine is remote from, say,—Milman. The verse is magical, it has haunted my memory since I was ten years old. Godscroft, who does not approve of the story of Douglas's murder by one of his men, writes that the dying leader said:—

“First do yee keep my death both from our own folke and from the enemy” (Froissart, “Let neither friend nor foe know of my estate”); “then that ye suffer not my standard to be lost or cast downe” (Froissart, “Up with my standard and call *Douglas!*”); “and last, that ye avenge my death” (also in Froissart). “Bury me at Melrose Abbey with my father. If I could hope for these things I should die with the greater contentment; for long since I *heard a prophesie that a dead man should winne a field, and I hope in God it shall be I.*” [\[75a\]](#)

I saw a dead man won the fight,
And I think that man was I!

Godscroft, up to the mention of Melrose and the prophecy, took his tale direct from Froissart, or, if he took it from George Buchanan's Latin

History, Buchanan's source was Froissart, but Froissart's was evidence from Scots who were in the battle.

But who changed the prophecy to a dream of Douglas, and who versified Godscroft's "a dead man shall winne a field, and I hope in God it shall be I"? Did Godscroft take that from the ballad current in his time and quoted by him? Or did a *remanieur* of Godscroft turn *his* words into

I saw a dead man win the fight,
And I think that man was I?

Scott did not make these two noble lines out of Godscroft, he found them in Hogg's copy from recitation, only altering "I saw" into "I dreamed," and the ungrammatical "won" into "win"; and "*the* fight" into "*a* fight."

The whole dream stanza occurs in a part of the ballad where Hogg confesses to no alteration or interpolation, and I doubt if the Shepherd of Ettrick had read a rare old book like Godscroft. If he had not, this stanza is purely traditional; if he had, he showed great genius in his use of Godscroft.

In Hogg's Ettrick copy, Douglas, after telling his dream, rushes into battle, is wounded by Percy, and "backward flees." Scott (xx.), following a historical version (Wyntoun's *Cronykil*), makes

Douglas forget the helmit good
That should have kept his brain.

Being wounded, in Hogg's version, and "backward fleeing," Douglas sends his page to bring Montgomery (Hogg), and from stanza xxiv. to xxxiv., in Hogg, all is made up by himself, he says,—from facts given "in plain prose" by his reciters, with here and there a line or two given in verse. Scott omitted some verses here, amended others slightly, by help of Herd's version, *left out a broken last stanza* (xl.) and put in Herd's concluding lines (stanza lxviii. in the English text).

This deed was done at the Otterburn. (Herd.)

The fray began at Otterburn. (English.)

Now what was the broken Ettrick stanza that Scott omitted in his published *Otterburne* (1806)? It referred to Sir Hugh Montgomery, who, in Herd, captured Percy after a fight; in the English version is a prisoner apparently exchanged for Percy. In the Ettrick MS. the omitted verse is

He left not an Englishman on the field

...

That he hadna either killed or taen
Ere his heart's blood was cauld.

Scott ended with Herd's last stanza; in the English version the last but two.

Now the death, at Otterburn, of Sir Hugh, is recorded in an English ballad styled *The Hunting of the Cheviot*. By 1540–50 it was among the popular songs north of Tweed. *The Complaynte of Scotland* (1549) mentions among "The Songis of Natural Music of the Antiquitie" (*volkslieder*), *The Hunttis of Chevet*. Our copy of the English version is in the Bodleian (MS. Ashmole, 48). It ends: "Expliceth, quod Rychard Sheale," a minstrel who recited ballads and tales at Tamworth (*circ.* 1559). The text was part of his stock-in-trade.

The Cheviot ballad, in a Scots form popular in 1549, is later in many ways than the English *Battle of Otterburne*. It begins with a brag of Percy, a vow that, despite Douglas, he will hunt in the Cheviot hills. While Percy is hunting with a strong force, Douglas arrives with another. Douglas offers to decide the quarrel by single combat with Percy, who accepts. Richard Witherington refuses to look on quietly, and a general engagement ensues.

At last the Duglas and the Perse met,
Lyk to Captayns of myght and of mayne,
They swapte together tylle they both swat
With swordes that wear of fyn myllan.

We are back in stanza I. of the English *Otterburne*, in stanza xxxv. (substituting Hugh Montgomery for Douglas) of the Hogg MS. In *The Hunting*, Douglas is slain by an English arrow (xxxvi.–xxxviii.).

Sir Hugh Montgomery now charges and slays Percy (who, of course, was merely taken prisoner). An archer of Northumberland sends an arrow

through good Sir Hugh Montgomery (xliii.–xlvi.). Stanza lxvi. has

At Otterburn begane this spurne,
Upon a Monnynday;
There was the doughte Douglas sleane,
The Perse never went away.

This is a form of Herd's stanza xiv. of the English *Otterburn* (lxviii.), made soon after the battle. We see that the *original* ballad has protean variants; in time all is mixed in tradition.

Now the curious and interesting point is that Hogg, when he collected the ballad from two reciters, himself noticed that the *Cheviot* ballad had merged, in some way, into the *Otterburn* ballad, and pointed this out to Scott. I now publish Hogg's letter to Scott, in which, as usual, he does not give the year-date: I think it was 1805.

ETTRICK HOUSE, *Sept.* 10, [?1805].

DEAR SIR,—Though I have used all diligence in my power to recover the old song about which you seemed anxious, I am afraid it will arrive too late to be of any use. I cannot at this time have Grame and Bewick; the only person who hath it being absent at a harvest; and as for the scraps of *Otterburn* which you have got, *they seem to have been some confused jumble made by some person who had learned both the songs you have, [79a] and in time had been straitened to make one out of them both.* But you shall have it as I had it, saving that, as usual, I have sometimes helped the metre without altering one original word.

Hogg here gives his version from recitation as far as stanza xxiv.

Here Hogg stops and writes:—

The ballad, which I have collected from two different people, a crazy old man and a woman deranged in her mind, seems hitherto considerably entire; but now, when it becomes most interesting, they have both failed me, and I have been obliged to take much of it in plain prose. However, as none of them seemed to know anything of

the history save what they had learned from the song, I took it the more kindly. Any few verses which follow are to me unintelligible.

He told Sir Hugh that he was dying, and ordered him to conceal his body, and neither let his own men nor Piercy's know; which he did, and the battle went on headed by Sir Hugh Montgomery, and at length

Here follow stanzas up to xxxviii.

Hogg then goes on thus:—

Piercy seems to have been fighting devilishly in the dark. Indeed my narrators added no more, but told me that Sir Hugh died on the field, but that

He left not an Englishman on the field,

...

That he hadna either killed or ta'en
Ere his heart's blood was cauld.

Almonshire (Stanza iii.) may probably be a corruption of Bamburghshire, but as both my narrators called it so I thought proper to preserve it. The towers in Roxburgh fells (Stanza iii.) may not be so improper as we were thinking, there may have been some [English] strength on the very borders.—I remain, Dear Sir, your most faithful and affectionate servant, JAMES HOGG.

Hogg adds a postscript:

Not being able to get the letter away to the post, I have taken the opportunity of again pumping my old friend's memory, and have recovered some more lines and half lines of Otterburn, of which I am becoming somewhat enamoured. These I have been obliged to arrange somewhat myself, as you will see below, but so mixed are they with original lines and sentences that I think, if you pleased, they might pass without any acknowledgment. Sure no man will like an old song the worse of being somewhat harmonious. After stanza xxiv. you may read stanzas xxv. to xxxiv. Then after xxxviii. read xxxix.

Now we know all that can be known about the copy of the ballad which, in 1805, Scott received from Hogg. Up to stanza xxiv. it is as given by the two old reciters. The crazy man may be the daft man who recited to Hogg Burns's *Tam o' Shanter*, and inspired him with the ambition to be a poet. The deranged woman, like mad Madge Wildfire, was rich in ballad scraps. From stanza xxv. to xxxiv., Hogg confessedly "harmonises" what he got in plain prose intermixed with verse. Stanza xxxix. is apparently Hogg's. The last broken stanza, as Hogg said, is a reminiscence of the *Hunting of the Cheviot*, in a Scots form, long lost.

Hogg was not a scientific collector: had he been, he would have taken down "the plain prose" and the broken lines and stanzas verbally. But Hogg has done his best.

We have next to ask, How did Scott treat the material thus placed before him? He dropped five stanzas sent by Hogg, mainly from the part made up from "plain prose"; he placed in a stanza and a line or two from Herd's text; he remade a stanza and adopted a line from the English of 1550, and inserted an incident from Wyntoun's *Cronykil* (about 1430). He did these things in the effort to construct what Lockhart calls "a standard text."

1. In stanza i., for Hogg's "Douglas went," Scott put "bound him to ride."
2. (H.) "With the Lindsays."
(S.) "With *them* the Lindesays."
3. (H.) "Almonshire."
(S.) "Bamboroughshire."
(H.) "Roxburgh."
(S.) "Reidswire."
6. (H.) "The border again."
(S.) "The border fells."
7. (H.) "*Most* furiously."
(S.) "*Right* furiouslie."

9. (H.) A modernised stanza.

(S.) Scott deletes it.

15. (H.) Scott rewrites the stanza thus,

(H.)

But I will stay at Otterburn,
Where you shall welcome be;
And if ye come not at three days end,
A coward I'll call thee.

(S.)

“Thither will I come,” proud Percy said,
“By the might of Our Ladye.”
“There will I bide thee,” said the Douglas,
“My troth I'll plight to thee.”

19. (H.) “I have *seen* a dreary dream.”

20. (S.) “I have *dreamed* a dreary dream.”

21. (H.)

Where he met with the stout Percy
And a' his goodly train.

21. (S.)

But he forgot the helmet good
That should have kept his brain.

(From Wyntoun.)

22. (H.) Line 2. “Right keen.”

(S.) Line 2. “Fu' fain.”

Line 4.

The blood ran down like rain.

Line 4.

The blood ran them between.

23. (H.)

But Piercy wi' his good broadsword
Was made o' the metal free,
Has wounded Douglas on the brow
Till backward did he flee.

24. (S.)

But Piercy wi' his broadsword good
That could so sharply wound,
Has wounded Douglas on the brow,
Till he fell to the ground.

25. (H.) Here Hogg has mixed prose and verse, and does his best. Scott deletes Hogg's 25.

27. (H.) Douglas repeats the story of his dream. Scott deletes the stanza.

28. In Hogg's second line,

Nae mair I'll fighting see.

Scott gives, from Herd,

Take thou the vanguard of the three.

29. Hogg's verse is

But tell na ane of my brave men
That I lie bleeding wan,
But let the name of Douglas still
Be shouted in the van.

This is precisely what Douglas does say, in Froissart, but Scott deletes the stanza. Probably Hogg got the fact from his reciters, “in plain prose,” with a phrase or two in verse.

31. (H.) Line 4.

On yonder lily lee.

27. (S.)

That his merrie men might not see.

33. (H.) Scott deletes the stanza.

35. (H.)

When stout Sir Hugh wi’ Piercy met.

30. (S.)

The Percy and Montgomery met. [\[83a\]](#)

36. (H.)

“O yield thee, Piercy,” said Sir Hugh,
“O yield, or ye shall die!”
“Fain would I yield,” proud Percy said,
“But ne’er to loon like thee.”

31. (S.)

“Now yield thee, yield thee, Percy,” he said,
“Or else I vow I’ll lay thee low,”
“To whom must I yield,” quoth Earl Percy,
“Now that I see it must be so?”

Scott took this from Charles Kirkpatrick Sharpe’s MS. copy. [\[84a\]](#)

38. (H.)

38. (S.) Scott makes a slight verbal alteration.

39. (H.) Line 1.

34. (S.) Line 1.

Scott substitutes Herd's

As soon as he knew it was Montgomery.

40. (H.) Hogg's broken stanza on the death of Montgomery, derived from a lost form of the *Huntiss of Chevets*, named in *The Complaynte of Scotland*.

35. (S.) Scott omits giving the formula common to the English of 1550 and to Herd. This was the whole of Scott's editorial alteration. Any one may discover the facts from Professor Kittredge's useful abbreviation of Child's collection into a single volume (Nutt. London, 1905). Colonel Elliot quotes Professor Kittredge's book three or four times, but in place of looking at the facts he abounds in the Higher Criticism. Colonel Elliot says that Scott does not tell us of a single line having been borrowed from Percy's version. ^[84b] Scott has only "a single line" to tell of, the fourth line in his stanza xxii., "Till he fell to the ground."

For the rest, the old English version and Herd's have many inter-borrowings of stanzas, but we do not know whether a Scot borrowed from an Englishman, or *vice versa*. Thus, in another and longer traditional version—Hogg's—more correspondence must be expected than in Herd's fourteen stanzas. It is, of course, open to scepticism to allege that Hogg merely made his text, invented the two crazy old reciters, and the whole story about them, and his second "pumping of their memories," invented "Almonshire," which he could not understand, and invented his last broken stanza on the death of Montgomery, to give the idea that *The Huntiss of Chevets* was mingled in the recollections of the reciters with *The Battle of Otterburn*. He also gave the sword in place of the pennon of Percy as the trophy of Douglas, "and the same with intent to deceive," just as he pretended, in *Auld Maitland*, not to know what "springwalls" were, and wrote "springs: wall-stanes." If this probable theory be correct, then Scott was the dupe of Truthful James. At all events, though for three years Scott was moving heaven and earth and Ettrick Forest to find a copy of a Scottish ballad of

Otterburn, he did not sit down and make one, as, in Colonel Elliot's system, he easily could and probably would have done.

Before studying his next ill deed, we must repeat that the Otterburn ballads prove that in early times one nation certainly pirated a ballad of a rival nation, and very ingeniously altered it and inverted the parts of the heroes.

We have next to examine a case in a later generation, in which a maker who was interested in one clan, pirated, perverted, and introverted the *rôles* of the heroes in a ballad by a maker interested in another clan. Either an Elliotophile perverted a ballad by a Scottophile, or a Scottophile perverted a ballad by an Elliotophile.

This might be done at the time when the ballad was made (say 1620–60). But Colonel Elliot believes that the perversion was inflicted on an Elliotophile ballad by a Scottophile impostor about 1800–1802. The name of this desperate and unscrupulous character was Walter Scott, Sheriff of Ettrick Forest, commonly called Selkirkshire.

In this instance I have no manuscript evidence. The name of “Jamie of the Fair Dodhead,” the ballad, appears in a list of twenty-two ballads in Sir Walter's hand, written in a commonplace book about 1800–1801. Eleven are marked X. “Jamie” is one of that eleven. *Kinmont Willie* is among the eleven not marked X. We may conjecture that he had obtained the first eleven, and was hunting for the second eleven,—some of which he never got, or never published.

THE MYSTERY OF THE BALLAD OF JAMIE TELFER

I A RIDING SONG

The Ballad of Jamie Telfer of the Fair Dodhead has many charms for lovers of the Border. The swift and simple stanzas carry us through a great tract of country, which remains not unlike what it was in the days when Scotts, Armstrongs, and Elliots rode the hills in jack and knapsack, with sword and lance. The song leads us first, with a foraging party of English riders, from Bewcastle, an English hold, east of the Border stream of the Liddel; then through the Armstrong tribe, on the north bank; then through more Armstrongs north across Tarras water (“Tarras for the good bull trout”); then north up Ewes water, that springs from the feet of the changeless green hills and the *pastorum loca vasta*, where now only the shepherd or the angler wakens the cry of the curlews, but where then the Armstrongs were in force. We ride on, as it were, and look down into the dale of the stripling Teviot, *electro clarior* (then held by the Scotts); we descend and ford “Borthwick’s roaring strand,” as Leyden sings, though the burn is usually a purling brook even where it joins Teviot, three miles above Hawick.

Next we pass across the green waves of moorlands that rise to the heights over Ettrick (held by the Scotts), whence the foragers of the song gallop down to “The Fair Dodhead,” now a heap of grass-covered stones, but in their day a peel tower, occupied, *according to the ballad*, by one James Telfer. The English rob the peel tower, they drive away ten cows, and urge them southwards over Borthwick water, then across Teviot at Coultart Cleugh (say seven miles above Hawick), then up the Frostily burn, and so down Ewes water as before; but the Scottish pursuers meet them before they cross the Liddel again into English bounds. The English are defeated,

their captain is shot through the head (which in no way affects his power of making speeches); he is taken, twenty or thirty of his men are killed or wounded, his own cattle are seized, and his victim Telfer, returns rejoicing to Dodhead in distant Ettrick.

C'est magnifique, mais ce n'est pas la guerre! These events never occurred, as we shall see later, yet the poet has the old reiving spirit, the full sense of the fierce manly times, and possesses a traditional knowledge of the historical personages of the day, and knows the country,—more or less.

The poem has raised as many difficulties as Nestor's long story about raided cattle in the eleventh book of the *Iliad*. Historical Greece knew but dimly the places which were familiar to Nestor, the towns that time had ruined, the hill where Athene "turned the people again." We, too, have to seek in documents of the end of the sixteenth century, or in an old map of 1654 (drawn about 1600), to find Dodhead, Catslack, or Catloch, or Catlock hill, and Preakinhaugh, places essential to our inquiry.

I see the student who has ventured so far into my tract wax wan! He does not,—she does not,—wish to hear about dusty documents and ancient maps. For him or for her the ballad is enough, and a very good ballad it is. I would shake the faith of no man in the accuracy of the ballad tale, if it were not necessary for me to defend the character of Sir Walter Scott, which, on occasion of this and other ballads, is impugned by Colonel the Hon. FitzWilliam Elliot. He "hopes, though he cannot expect," that I will give my reasons for not sharing his belief that Sir Walter did a certain thing which I could not easily palliate. [\[89\]](#)

II THE BALLAD IMPOSSIBLE

My attempts to relieve Colonel Elliot from his painful convictions about Sir Walter's unsportsmanlike behaviour must begin with proof that the ballad, as it stands, cannot conceivably be other than "a pack o' lees." Here Colonel Elliot, to a great extent and on an essential point, agrees with me. In sketching rapidly the story of the ballad,—the raid from England into Ettrick, the return of the raiders, the pursuit,—I omitted the *clou*, the pivot, the central point of dramatic interest. It is this: in one version of the ballad,

—call it A for the present,—the unfortunate Telfer runs to ask aid from the laird of Buccleuch, at Branksome Hall, some three and a half or four miles above Hawick, on the Teviot. From the Dodhead it was a stiff run of eight miles, through new-fallen snow. The farmer of Dodhead, in the centre of the Scott country, naturally went for help to the nearest of his neighbours, the greatest chief in the mid-Border. In version A (which I shall call “the Elliot version”), “auld Buccleuch” (who was a man of about thirty in fact) was deaf to Telfer’s prayer.

Gae seek your succour frae Martin Elliot,
For succour ye’s get nane frae me,
Gae seek your succour where ye paid blackmail,
For, man, ye ne’er paid money to me.

This is impossibly absurd! As Colonel Elliot writes, “I pointed out in my book” (*The Trustworthiness of Border Ballads*) “that the allegation that Buccleuch had refused to strike a blow at a party of English raiders, who had insolently ridden some twenty-five miles into Scottish ground and into the very middle of his own territory, was too absurd to be believed . . .”
[\[91a\]](#)

Certainly; and the story is the more ridiculous as Buccleuch (who has taken Telfer’s protection-money, or “blackmail”) pretends to believe that Telfer—living in Ettrick, about nine miles from Selkirk—pays protection-money to Martin Elliot, residing at Preakinhaugh, high up the water of Liddel. Martin was too small a potentate, and far too remote to be chosen as protector by a man living near the farm of Singlee on Ettrick, and near the bold Buccleuch.

All this is nonsense. Colonel Elliot sees that, and suggests that all this is not by the original poet, but has been “inserted at some later period.” [\[91b\]](#) But, if so, *what was the original ballad before the insertion?* As it stands, all hinges on this impossible refusal of Buccleuch to help his neighbour and retainer, James Telfer. If Colonel Elliot excises Buccleuch’s refusal of aid as a later interpolation, and if he allows Telfer to reach Branksome and receive the aid which Buccleuch would rejoice to give, then the Elliot version of the ballad cannot take a further step. It becomes a Scott ballad, Buccleuch sends out his Scotts to pursue the English raiders, and the

Elliot, if they come in at all, must only be subordinates. But as the Elliot version stands, it is Buccleuch's refusal to do his duty that compels poor Jamie to run to his brother-in-law, "auld Jock Grieve" in Coultartcleugh, four miles higher on Teviot than Branksome. Jock gives him a mount, and he rides to "Martin's Hab" at "Catlockhill," a place unknown to research thereabout. Thence they both ride to Martin Elliot at Preakinhaugh, high up in Liddesdale, and the Elliots under Martin rescue Jamie's kye.

Now the original ballad, if it did not contain Buccleuch's refusal of aid to Telfer (which refusal is a thing "too absurd to be believed") must merely have told about the rescue of Jamie's kye by the Scotts, Wat of Harden, and the rest. If Buccleuch did not refuse help he gave it, and there was no ride by Telfer to Martin Elliot. Therefore, without a passage "too absurd to be believed" (Buccleuch's refusal), *there could be no Elliots in the story*. The alternative is, that Telfer in Ettrick *did* pay blackmail to a man so remote as Elliot of Preakinhaugh, though Buccleuch was his chief and his neighbour. This is absurd. Yet Colonel Elliot firmly maintains that the version, in which the Elliots have all the glory and Buccleuch all the shame, is the original version, and is true on essential points.

That is only possible if we cut out the verses about Buccleuch and make an Ettrick man not appeal to him, but go direct to a Liddesdale man for succour. He must run from Dodhead to Coultartcleugh, get a horse from Jock Grieve (Buccleuch's man and tenant), and then ride into Liddesdale to Martin. But an Ettrick man, in a country of Scotts, would inevitably go to his chief and neighbour, Buccleuch: it is inconceivable that he should choose the remote Martin Elliot as his protector, and go to *him*.

Thus, as a corollary from Colonel Elliot's own disbelief in the Buccleuch incident, the Elliot version of the ballad must be absolutely false and foolish.

If Colonel Elliot leaves in the verses on Buccleuch's refusal, he leaves in what he calls "too absurd to be believed." If he cuts out these verses as an interpolation, then Buccleuch lent aid to Telfer, and there was no occasion to approach Martin Elliot. Or, by a third course, the Elliot ballad originally made an Ettrick man, a neighbour of the great Buccleuch, never dream of appealing to *him* for help, but run to Coultartcleugh, four miles above

Buccleuch's house, and thence make his way over to distant Liddesdale to Martin Elliot! Yet Colonel Elliot says that in what I call "the Elliot version," "the story defies criticism." [\[93a\]](#) Now, however you take it,—I give you three choices,—the story is absolutely impossible.

This Elliot version was unknown to lovers of the ballads, till the late Professor Child of Harvard, the greatest master of British ballad-lore that ever lived, in his beautiful *English and Scottish Popular Ballads*, printed it from a manuscript belonging to Mr. Macmath, which had previously been the property of a friend of Scott, Charles Kirkpatrick Sharpe. This version is entitled "Jamie Telfer *in* the Fair Dodhead," not "*of*": Jamie was a tenant (there was no Jamie Telfer tenant of Dodhead in 1570–1609, but concerning that I have more to say). Jamie was no laird.

Before Professor Child's publication of the Elliot version, we had only that given by Scott in *The Border Minstrelsy* of 1802. Now Scott's version is at least as absurdly incredible as the Elliot version. In Scott's version the unhappy Jamie runs, not to Branksome and Buccleuch, to meet a refusal; but to "the Stobs's Ha'" (on Slitterick above Hawick) and to "auld Gibby Elliot," the laird. Elliot bids him go to Branksome and the laird of Buccleuch,

For, man, ye never paid money to me!

Naturally Telfer did not pay to Elliot: he paid to Buccleuch, if to any one. More, till after the Union of 1603, and the end of Border raids, Gilbert Elliot, a cousin and friend of Buccleuch, *was not the owner of Stobs*. The Hon. George Elliot pointed out this fact in his *Border Elliots and the Family of Minto*: Colonel Elliot rightly insists on this point.

The Scott version is therefore as hopelessly false as the Elliot version. The Elliot version, with the Buccleuch incident, is "too absurd to be believed," and could not have been written (except in banter of Buccleuch), while men remembered the customs of the sixteenth century. The Scott version, again, could not be composed before the tradition arose that Gilbert Elliot *was* laird of Stobs before the Union of the Crowns in 1603. Now that tradition was in full force on the Border before 1688. We know that (see chapter on *Kinmont Willie*, *infra*), for, in 1688, a man born in 1613, Captain Walter

Scott of Satchells, in his *Metrical History of the Honourable Families of the Names of Scott and Elliot*, represents Gilbert Elliot of Stobs as riding with Buccleuch in the rescue of Kinmont Willie, in 1596. ^[95a] Now Satchells's own father rode in that fray, he says, ^[95b] and he gives a minute genealogy of the Elliots of Stobs. ^[95c]

Thus the belief that Gilbert Elliot was laird of Stobs by 1596 was current in the traditions of a man born seventeen years after 1596. *The Scott version rests on that tradition*, and is not earlier than the rise of that erroneous belief.

Neither the Scott nor Elliot version is other than historically false. But the Scott version, if we cut out the reference to auld Gibby Elliot, offers a conceivable, though not an actual, course of events. The Elliot version, if we excise the Buccleuch incident, does not. Cutting out the Buccleuch incident, Telfer goes all the way from Ettrick to Liddesdale, seeking help in that remote country, and never thinks of asking aid from Buccleuch, his neighbour and chief. This is idiotic. In the Scott version, if we cut out the refusal of Gilbert Elliot of Stobs, Telfer goes straight to his brother-in-law, auld Jock Grieve, within four miles of Buccleuch at Branksome; thence to another friend, William's Wat, at Catslockhill (now Branksome-braes), and so to Buccleuch at Branksome. This is absurd enough. Telfer would have gone straight to Branksome and Buccleuch, unless he were a poor shy small farmer, *who wanted sponsors*, known to Buccleuch. Jock Grieve and William's Wat, both of them retainers and near neighbours of Buccleuch, were such sponsors. Granting this, the Scott version runs smoothly, Telfer goes to his sponsors, and with his sponsors to Buccleuch, and Buccleuch's men rescue his kye.

III

COLONEL ELLIOT'S CHARGE AGAINST SIR WALTER SCOTT

Colonel Elliot believes generally in the historical character of the ballad as given in the Elliot version, but "is inclined to think that" the original poet "never wrote the stanza" (the stanza with Buccleuch's refusal) "at all, and that it has been inserted at some later period." ^[97a] In that case Colonel

Elliot is “inclined to think” that an Ettrick farmer, robbed by the English, never dreamed of going to his neighbour and potent chief, but went all the way to Martin Elliot, high up in Liddesdale, to seek redress! Surely few can share the Colonel’s inclination. Why should a farmer in Ettrick “choose to lord” a remote Elliot, when he had the Cock of the Border, the heroic Buccleuch, within eight miles of his home?

Holding these opinions, Colonel Elliot, with deep regret—

I wat the tear blinded his ee—

accuses Sir Walter Scott of having taken the Elliot version—till then the only version—and of having altered stanzas vii.–xi. (in which Jamie goes to Branksome, and is refused succour) into his own stanzas vii.–xi., in which Jamie goes to Stobs and is refused succour. This evil thing Scott did, thinks Colonel Elliot. Scott had no copy, he thinks, of the ballad except an Elliot copy, which he deliberately perverted.

We must look into the facts of the case. I know no older published copy of the ballad than that of Scott, in *Border Minstrelsy*, vol. i. p. 91 *et seqq.* (1802). Professor Child quotes a letter from the Ettrick shepherd to Scott of “June 30, 1802” thus: “I am surprised to find that the songs in your collection differ so widely from my mother’s; *Jamie Telfer* differs in many particulars.” [\[98a\]](#) (This is an incomplete quotation. I give the MS. version later.)

Scott himself, before Hogg wrote thus, had said, in the prefatory note to his *Jamie Telfer*: “There is another ballad, under the same title as the following, in which nearly the same incidents are narrated, with little difference, except that the honour of rescuing the cattle is attributed to the Liddesdale Elliots, headed by a chief there called Martin Elliot of the Preakin Tower, whose son, Simm, is said to have fallen in the action. It is very possible that both the Teviotdale Scotts and the Elliots were engaged in the affair, and that each claimed the honour of the victory.”

Old Mrs. Hogg’s version, “differing in many particulars” from Scott’s, must have been the Elliot version, published by Professor Child, as “A*,” “*Jamie Telfer in*” (not “*of*”) “the Fair Dodhead,” “from a MS. written about the beginning of the nineteenth century, and now in the possession of Mr.

William Macmath”; it had previously belonged to Charles Kirkpatrick Sharpe. [\[98b\]](#)

There is one great point of difference between the two forms. In Sir Walter’s variant, verse 26 summons the Scotts of Teviotdale, including Wat of Harden. In his 28 the Scotts ride with the slogan “Rise for Branksome readily.” Scott’s verses 34, 36, and the two first lines of 38, are, if there be such a thing as internal evidence, from his own pen. Such lines as

The Dinlay snaw was ne’er mair white
Nor the lyart locks o’ Harden’s hair

are cryingly modern and “Scottesque.”

That Sir Walter knew the other version, as in Mr. Macmath’s MS. of the early nineteenth century, is certain; he describes that version in his preface. That he effected the whole transposition of Scotts for Elliots is Colonel Elliot’s opinion. [\[99a\]](#)

If Scott did, I am not the man to defend his conduct; I regret and condemn it; and shall try to prove that he found the matter in his copy. I shall first prove, beyond possibility of doubt, that the ballad is, from end to end, utterly unhistorical, though based on certain real incidents of 1596–97. I shall next show that the Elliot version is probably later than the Scott version. Finally, I shall make it certain (or so it seems to me) that Scott worked on an old copy which was *not* the copy that belonged to Kirkpatrick Sharpe, but contained points of difference, *not* those inserted by Sir Walter Scott about “Dinlay snaw,” and so forth.

IV WHO WAS THE FARMER IN THE DODHEAD IN 1580– 1609?

Colonel Elliot has made no attempt to prove that one Telfer was tenant of the Dodhead in 1580–1603, which must, we shall see, include the years in which the alleged incidents occur. On this question—was there a Telfer in the Dodhead in 1580–1603?—I consulted my friend, Mr. T. Craig Brown, author of an excellent *History of Selkirkshire*. In that work (vol. i. p. 356)

the author writes: “Dodhead or Scotsbank; Dodhead was one of the four stedes of Redefurd in 1455. In 1609 Robert Scot of Satchells (ancestor of the poet-captain) obtained a Crown charter of the lands of Dodbank.” For the statement that Dodhead was one of the three stedes in 1455, Mr. Craig Brown quotes “The Retoured Extent of 1628,” “an unimpeachable authority.” For the Crown charter of 1609, we have only to look up “Dodbank” in the Register of the Great Seal of 1609. The charter is of November 24, 1609, and gratifies “Robert Scott of Satscheillis” (father of the Captain Walter Scott who composed the *Metrical History* of the Scotts in 1688) with the lands, which have been occupied by him and his forefathers “from a time past human memory.” Thus, writes Mr. Craig Brown to me, “Scott of Satchells was undoubtedly Scott of *Dodhead* also in 1609.”

In “The Retoured Extent of 1628,” “*Dodhead* or Dodbank” appears as Harden’s property. Thus in 1628 the place was “Dodhead or Dodbank,” a farm that had been tenanted by Scotts “from beyond human memory.” But Mr. Craig Brown proves from record that one Simpson farmed it in 1510.

So where does Jamie Telfer come in?

The farmers were Scotts, it was to their chief, Buccleuch, that they went when they needed aid. [\[101a\]](#)

Thus vanishes the hero of the ballad, *Jamie Telfer in the Fair Dodhead*, and thus the ballad is pure fiction from end to end.

V

MORE IMPOSSIBILITIES IN THE BALLAD

This is only one of the impossibilities in the ballad. That the Captain of Bewcastle, an English hold, stated in a letter of the period to be distant three miles from the frontier, the Liddel water, should seek “to drive a prey” from the Ettrick, far through the bounds of his neighbours and foes, Grahams, Armstrongs, Scotts, and Elliots, is a ridiculously absurd circumstance.

Colonel Elliot attempts to meet this difficulty by his theory of the route taken by the Captain, which he illustrates by a map. [\[102a\]](#) The ballad gives

no details except that the Captain found his first guide “high up in Hardhaughswire,” which Colonel Elliot cannot identify. The second guide was “laigh down in Borthwick water.” If this means on the lower course of the Borthwick, the Captain was perilously near Branksome Hall and Harden, and his ride was foolhardy. But “laigh down,” I think, means merely “on lower ground than Hardhaughswire.”

The Captain, as soon as he crossed the Ritterford after leaving Bewcastle, was in hostile and very watchful Armstrong country. This initial difficulty Colonel Elliot meets by marking on his map, as Armstrong country, the north bank of the Liddel down to Kershope burn; and the Captain crosses Liddel below that burn at Ritterford. Thence he goes north by west, across Tarras water, up Ewes water, up Mickledale burn, by Merrylaw and Ramscleugh and so on to Howpasley, which is not on the lower but the upper Borthwick.

Looking at Colonel Elliot’s chart of the Captain’s route, all seems easy enough for the Captain. He does not try to ride into Teviotdale, for which he is making, up the Liddel water, and thence by the Hermitage tributary on his left. Colonel Elliot studs that region with names of Armstrong and Elliot strongholds. He makes the Captain, crossing Liddel by the Ritterford, bear to his left, through a space empty of hostile habitations, in his map. This seems prudent, but the region thus left blank was full of the fiercest and most warlike of the Armstrong name. That road was closed to the Captain!

Colonel Elliot has failed to observe this fact, which I go on to prove, from a memoir addressed in 1583 to Burleigh, by Thomas Musgrave, the active son of the aged Captain of Bewcastle, Sir Simon Musgrave. Thomas describes the topography of the Middle Marches. He says that the Armstrongs hold both banks of Liddel as far south as “Kershope foot” (the junction of the Kershope with the Liddel), and hold the north side of the Liddel as far as its junction with the Esk. [\[103a\]](#) Thus on crossing Liddel by the Ritterford, the Captain had at once to pass through the hostile Armstrongs. Thereby also were Grahams with whom the Musgraves of Bewcastle were in deadly feud. Farther down Esk, west of Esk, dwelt Kinmont Willie, an Armstrong, “at a place called Morton.” If he did pass so far through Armstrongs, the Captain met them again, farther north, on

Tarras side, where Runyen Armstrong lived at Thornythaite. Near him was Armstrong of Hollhouse, Musgrave's great enemy. North of Tarras the Captain rode through Ewesdale; there he had to deal with three hundred Armstrong men of the spear. [\[104a\]](#) When he reached Ramscleuch (which he never could have done), the Colonel's map makes the Captain ride past Ramscleuch, then farmed by the Grieves, retainers of Buccleuch, who would warn Branksome. When the Captain reached Howpasley on Borthwick water, he would be observed by the men of Scott of Howpasley, the Grieves, who could send a rider some six miles to warn Branksome.

We get the same information as to the perils of the Captain's path from the places marked on Blaeu's map of 1600–54. There are Hollhouse and Thornythaite, Armstrong towers, and the active John Armstrong of Langholm can come at a summons.

It seems to be a great error to suppose that the route chosen for the Captain by Colonel Elliot could lead him into anything better than a death-trap. I must insist that it would have been madness for a Captain of Bewcastle to ride far through Armstrong country, deep into Buccleuch's country, and return on another line through Scott, and near Elliot, and through Armstrong country—and all for no purpose but to steal ten cows in remote Selkirkshire!

Here I may save the reader trouble, by omitting a great mass of detail as to the deplorable condition of Bewcastle itself in 1580–96. Sir Simon, the Captain, declares himself old and weary. The hold is "utterly decayed," the riders are only thirty-seven men fairly equipped. Soldiers are asked for, sometimes fifty are sent from the garrison of Berwick, then they are withdrawn. Bewcastle is forayed almost daily; "March Bills" minutely describe the cattle, horses, and personal property taken from the Captain and the people by the Armstrongs and Elliots.

Once, in 1582, Thomas Musgrave slew Arthur Graham, a near neighbour, and took one hundred and sixty kye, but this only caused such a feud that the Musgraves could not stir safely from home. From 1586 onwards, Thomas Musgrave, officially or unofficially, was acting Captain of Bewcastle. He had no strength to justify him in raiding to remote Ettrick, through enemies who penned him in at Bewcastle.

I look on Musgrave as the Captain whose existence is known to the ballad-maker, and I find the origin of the tale of his defeat and capture in the ballad, in a distorted memory of his actual capture.

On 3rd July 1596, Thomas (having got Scrope's permission, without which he dared not cross the Border on affairs of war) attempted a retaliatory raid on Armstrongs within seven miles of the Border, the Armstrongs of Hollace, or Hollhouse. "He found only empty houses;" he "sought a prey" in vain; he let his men straggle, and returning homeward, with some fifteen companions, he was ambushed by the Armstrongs near Bewcastle, was refused shelter by a Graham, was taken prisoner, and was sent to Buccleuch at Branksome. On 15th July he came home under a bond of £200 for ransom. [\[106a\]](#) As every one did, in his circumstances, the Captain made out his Bill for Damages. It was indented on 28th April 1597. We learn that John (Armstrong) of Langholm, Will of Kinmont (not Liddesdale men), and others, who took him, are in the Captain's debt for "24 horses and mares, himself prisoner, and ransomed to £200, and 16 other prisoners, and slaughter." The charges are admitted by the accused; the Captain is to get £400. [\[106b\]](#)

In my opinion this capture of the Captain of Bewcastle and others, poetically handled, is, with other incidents, the basis of the ballad. Colonel Elliot says that the incident "is no proof that a Captain of Bewcastle was not also taken or killed at some other place or at some other time." But *what* Captain, and when? Sir Simon, in 1586, had been Captain, he says, for thirty years. Thenceforth till near the Union of the Crowns, Thomas was Captain, or acting Captain.

So considerable an event as the taking of a Captain of Bewcastle, who, in the ballad, was shot through the head and elsewhere, could not escape record in dispatches, and the periodical "March Bills," or statements of wrongs to be redressed. Colonel Elliot's reply takes the shape of the argument that the ballad may speak of some other Captain, at some other time; and that, in one way or another, the sufferings and losses of *that* Captain may have escaped mention in the English dispatches from the Border. These dispatches are full of minute details, down to the theft of a single mare. I am content to let historians familiar with the dispatches decide as to whether the Captain's mad ride into Ettrick, with his dangerous

wounds, loss of property, and loss of seventeen men killed and wounded (as in the ballad), could escape mention.

The capture of Thomas Musgrave, I think, and two other incidents,—confused in course of tradition, and handled by the poet with poetic freedom,—are the materials of *Jamie Telfer*. One of the other incidents is of April 1597. ^[107a] Here Buccleuch in person, on the Sabbath, burned twenty houses in Tynedale, and “slew fourteen men who had been in Scotland and brought away their booty.” Here we have Buccleuch “on the hot trod,” pursuing English reivers, recovering the spoils probably, and slaying as many of the raiders as the Captain lost, in the ballad. Again, not a son of Elliot of Preakinhaugh (as I had erroneously said), but a *nephew* named Martin, was slain in a Tynedale raid into Liddesdale. ^[108a] Soldiers aided the English raiders. A confused memory of this death of Elliot’s nephew in 1597 may be the source of the story of the death of his son, Simmy, in the ballad.

Our traditional ballads all arise out of some germs of history, all handle the facts romantically, and all appear to have been composed, in their extant shapes, at a considerable time after the events. I may cite *Mary Hamilton*; *The Laird of Logie* is another case in point; there are many others.

Colonel Elliot does not agree with me. So be it.

Colonel Elliot writes that,—in place of my saying that *Jamie Telfer* “is a mere mythical perversion of carefully recorded facts,”—“it would surely be more correct to say that it is a fairly true, though jumbled, account of actual incidents, separated from each other by only short periods of time . . .”

^[108b] If he means, or thinks that I mean, that the actual facts were the capture of Musgrave near Bewcastle in 1596 by the Armstrongs, with Buccleuch’s hot-trod, and Martin Elliot’s slaying in 1597, I entirely agree with him that the facts are “jumbled.” But as to the opinion that the ballad is “fairly true” about the raid to Ettrick (the Captain could not ride a mile beyond the Border without the Warden’s permission), about the non-existent Jamie Telfer, about the shooting, taking, and plundering of the Captain, about his loss of seventeen men wounded and slain (he lost about as many prisoners),—I have given reasons for my disbelief.

VI

IS THE SCOTT VERSION, WITH ELLIOTS AND SCOTTS TRANPOSED, THE LATER VERSION?

We now come to the important question, Is the Scott version of the ballad (apart from Sir Walter's decorative stanzas) necessarily *later* than the Elliot version in Sharpe's copy? The chief argument for the lateness of the Scott version, the presence of a Gilbert Elliot of Stobs at a date when this gentleman had not yet acquired Stobs, I have already treated. If the ballad is no earlier than the date when Elliot was believed (as by Satchells) to have obtained Stobs before 1596, the argument falls to the ground.

Starting from that point, and granting that a minstrel fond of the Scotts wants to banter the Elliots, he may make Telfer ask aid at Stobs. After that, which version is better in its topography? Bidden by Stobs to seek Buccleuch, Telfer runs to Teviot, to Coultartcleugh, some four miles above Branksome. Branksome was nearer, but Telfer was shy, let us say, and did not know Buccleuch; while at Coultartcleugh, Jock Grieve was his brother-in-law. Jock gives him a mount, and takes him to "Catslockhill."

Now, no Catslockhill is known anywhere, to me or to Colonel Elliot. Mr. Henderson, in a note to the ballad, [\[110a\]](#) speaks of "Catslack in Branhholm," and cites the *Register of the Privy Seal* for 4th June 1554, and the *Register of the Privy Council* for 14th October 1592. The records are full of *that* Catslack, but it is not in Branksome. Blaeu's map (1600–54) gives it, with its appurtenances, on the north side of St. Mary's Loch. There is a Catslack on the north side of Yarrow, near Ladhope, on the southern side. Neither Catslack is the Catslockhill of the Scott ballad. But on evidence, "and it is good evidence," says Colonel Elliot, [\[110b\]](#) I prove that, in 1802, a place called "Catlochill" existed between Coultartcleugh and Branksome. The place (Mrs. Grieve, Branksome Park, informs me) is now called Branksome-braes. On his copy of *The Minstrelsy* of 1802, Mr. Grieve, then tenant of Branksome Park, made a marginal note. Catlochill was still known to him; it was in a commanding site, and had been strengthened by the art of man. His note I have seen and read.

Thus, on good evidence, there was a Catlochill, or Catlockhill, between Coultartcleugh and Branksome. The Scott version is right in its topography.

This fact was unknown to Colonel Elliot. Not knowing a Catslackhill or Catslockhill in Teviot, he made Scott's Telfer go to an apocryphal Catlockhill in Liddesdale. Professor Veitch had said that the Catslockhill of the ballad "*is to be sought*" in some locality between Coultartcleugh and Branxholm. Colonel Elliot calls this "a really preposterously cool suggestion." [\[111a\]](#) Why "really preposterously cool"? Being sought, the place is found where it had always been. Jamie Telfer found it, and in it his friend "William's Wat," who took him to the laird of Buccleuch at Branksome.

In the Elliot version, when refused aid by Buccleuch, Jamie ran to Coultartcleugh,—as in Scott's,—on his way to Martin Elliot at Preakinhaugh on the Liddel. Jamie next "takes the fray" to "the Catlockhill," and is there remounted by "Martin's Hab," an Elliot (not by William's Wat), and *they* "take the fray" to Martin Elliot at Preakinhaugh in Liddesdale. This is very well, but where *is* this "Catlockhill" in Liddesdale? Is it even a real place?

Colonel Elliot has found no such place; nor can I find it in the *Registrum Magni Sigilli*, nor in Blaeu's map of 1600–54.

Colonel Elliot's argument has been that the Elliot version, the version of the Sharpe MS., is the earlier, for, among other reasons, its topography is correct. [\[112a\]](#) It makes Telfer run from Dodhead to Branksome for aid, because that was the comparatively near residence of the powerful Buccleuch. Told by Buccleuch to seek aid from Martin Elliot in Liddesdale, Telfer does so. He runs up Teviot four miles to his brother-in-law, Jock Grieve, who mounts him. He then rides off at a right angle, from Teviot to Catlockhill, says the Elliot ballad, where he is rehorsed by Martin's Hab. The pair then take the fray to Martin Elliot at Preakinhaugh on Liddel water, and Martin summons and leads the pursuers of the Captain.

This, to Colonel Elliot's mind, is all plain sailing, all is feasible and natural. And so it *is* feasible and natural, if Colonel Elliot can find a Catlockhill anywhere between Coultartcleugh and Preakinhaugh. On that line, in Mr.

Veitch's words, Catlockhill "is to be sought." But just as Mr. Veitch could find no Catslockhill between Coultartcleugh and Branksome, so Colonel Elliot can find no Catlockhill between Coultartcleugh and Preakinhaugh. He tells us [\[112b\]](#) indeed of "Catlockhill on Hermitage water." But there is no such place known! Colonel Elliot's method is to take a place which, he says, is given as "Catlie" Hill, "between Dinlay burn and Hermitage water, on Blaeu's map of 1654." We may murmur that Catlie Hill is one thing and Catlock another, but Colonel Elliot points out that "lock" means "the meeting of waters," and that Catlie Hill is near the meeting of Dinlay burn and the Hermitage water. But then why does Blaeu call it, not Catlockhill, nor Catlie hill, nor "Catlie" even, but "*Gatlie*," for so it is distinctly printed on my copy of the map? Really we cannot take a place called "Gatlie Hill" and pronounce that we have found "Catlockhill"! Would Colonel Elliot have permitted Mr. Veitch—if Mr. Veitch had found "Gatlie Hill" near Branksome, in Blaeu—to aver that he had found Catslockhill near Branksome?

Thus, till Colonel Elliot produces on good evidence a Catlockhill between Coultartcleugh and Preakinhaugh, the topography of the Elliot ballad, of the Sharpe copy of the ballad, is nowhere, for neither Catliehill nor Gatliehill is Catlockhill. That does not look as if the Elliot were older than the Scott version. (There was a *Sim Armstrong* of the *Cathill*, slain by a Ridley of Hartswell in 1597. [\[113a\]](#))

We now take the Scott version where Telfer has arrived at Branksome. Scott's stanza xxv. is Sharpe's xxiv. In Scott, Buccleuch; in Sharpe, Martin Elliot bids his men "warn the waterside" (Sharpe), "warn the water braid and wide" (Scott). Scott's stanza xxvi. is probably his own, or may be, for he bids them warn Wat o' Harden, Borthwick water, and the Teviot Scotts, and Gilmanscleuch—which is remote. Then, in xxvii., Buccleuch says—

Ride by the gate of Priesthaughswire,
And warn the Currors o' the Lee,
As ye come down the Hermitage slack
Warn doughty Wiliie o' Gorrinberry.

All this is plain sailing, by the pass of Priesthaughswire the Scotts will ride from Teviot into Hermitage water, and, near the Slack, they will pass

Gorranberry, will call Will, and gallop down Hermitage water to the Liddel, where they will nick the returning Captain at the Ritterford.

The Sharpe version makes Martin order the warning of the waterside (xxiv.), and then Martin says (xxv.)—

When ye come in at the Hermitage Slack,
Warn doughty Will o' Gorranberry.

Colonel Elliot [\[114a\]](#) supposes Martin (if I follow his meaning) to send Simmy with his command, *back over all the course that Telfer and Martin's Hab have already ridden*: back past Shaws, near Braidley (a house of Martin's), past "Catlockhill," to Gorranberry, to "warn the waterside." But surely Telfer, who passed Gorranberry gates, and with Hab passed the other places, had "taken the fray," and warned the water quite sufficiently already. If this be granted, the Sharpe version is taking from the Scott version the stanza, so natural there, about the Hermitage Slack and Gorranberry. But Colonel Elliot infers, from stanzas xxvi., xxx., xxxi., that Simmy has warned the water as far as Gorranberry (*again*), has come in touch with the Captain, "between the Frostily and the Ritterford," and that this is "consistent only with his having moved up the Hermitage water."

Meanwhile Martin, he thinks, rode with his men down Liddel water. But here we get into a maze of topographical conjecture, including the hypothesis that perhaps the Liddel came down in flood, and caused the English to make for Kershope ford instead of Ritterford, and here they were met by Martin's men on the Hermitage line of advance. I cannot find this elegant combined movement in the ballad; all this seems to me hypothesis upon hypothesis, even granting that Martin sent Simmy back up Hermitage that he might thence cut sooner across the enemy's path. Colonel Elliot himself writes: "It is certain that after the news of the raid reached Catlockhill" (*and Gorranberry, Telfer passed it*), "it must have spread rapidly through Hermitage water, and it is most unlikely for the men of this district to have delayed taking action until they received instructions from their chief." [\[115\]](#)

That is exactly what I say; but Martin says, "When ye come in at the Hermitage Slack, warn doughty Will o' Gorranberry." Why go to warn him,

when, as Colonel Elliot says, the news is running through Hermitage water, and the men are most probably acting on it,—as they certainly would do?

Martin's orders, in Sharpe xxv., are taken, I think, from Buccleuch's, in Scott's xxvii.

The point is that Martin had no need to warn men so far away as Gorranberry,—they were roused already. Yet he orders them to be warned, and about a combined movement of Martin and Simmy on different lines the ballad says not a word. All this is inference merely, inference not from historical facts, but from what may be guessed to have been in the mind of the poet.

Thus the Elliot or Sharpe version has topography that will not hold water, while the Scott topography does hold water; and the Elliot song seems to borrow the lines on the Hermitage Slack and Gorranberry from a form of the Scott version. This being the case, the original version on which Scott worked is earlier than the Elliot version. In the Scott version the rescuers must come down the Hermitage Slack: in the Elliot they have no reason for riding *back* to that place.

VII

SCOTT HAD A COPY OF THE BALLAD WHICH WAS NOT THE SHARPE COPY

Did Scott know no other version than that of the Sharpe MS.? In Scott's version, stanza xlix., the last, is absent from the Elliot version, which concludes triumphantly, thus—

Now on they came to the fair Dodhead,
They were a welcome sight to see,
And instead of his ain ten milk-kye
Jamie Telfer's gotten thirty and three.

Scott too gives this, but ends with a verse not in Sharpe—

And he has paid the rescue shot
Baith wi' goud and white money,

And at the burial o' Willie Scott
I wat was mony a weeping ee.

Did Scott add this? Proof is impossible; but the verse is so prosaic, and so injurious to the triumphant preceding verse, that I think Scott found it in his copy: in which case he had another copy than Sharpe's.

Scott (stanza xviii.) reads "Catslockhill" where the Sharpe MS. reads "Catlockhill." In Scott's time it was a mound, but the name was then known to Mr. Grieve, the tenant of Branksome Park. To-day I cannot find the mound; is it likely that Scott, before making the change, sought diligently for the mound and its name? If so, he found "*Catlochill*," for so Mr. Grieve writes it, not Catslockhill.

Meanwhile Colonel Elliot, we know, has no Catlockhill where he wants it; he has only Gatliehill, unless his Blaeu varies from my copy, and Gatliehill is not Catlockhill.

Scott gives (xlvi.) the speech of the Captain after he is shot through the head and in another dangerous part of his frame—

"Hae back thy kye!" the Captain said,
"Dear kye, I trow, to some they be,
For gin I suld live a hundred years,
There will ne'er fair lady smile on me."

This is not in Sharpe's MS., and I attribute this redundant stanza to Scott's copy. The Captain, remember, has a shot "through his head," and another which must have caused excruciating torture. In these circumstances would a poet like Scott put in his mouth a speech which merely reiterates the previous verse? No! But the verse was in Scott's copy.

Colonel Elliot has himself noted a more important point than these: he quotes Scott's stanza xii., which is absent from the Sharpe MS.—

My hounds may a' rin masterless,
My hawks may fly frae tree to tree,
My lord may grip my vassal lands,
For there again maun I never be!

“They are, doubtless, beautiful lines, but their very beauty jars like a false note. One feels they were written by another hand, by an artist of a higher stamp than a Border ‘ballad-maker.’ And not only is it their beauty that jars, but so also does their inapplicability to Jamie Telfer and to the circumstances in which he found himself—so much so, indeed, that it may well occur to one that the stanza belongs to some other ballad, and has accidentally been pitchforked into this one. It would not have been out of place in the ballad of *The Battle of Otterbourne*, and, indeed, it bears some resemblance to a stanza in that ballad.” Here the Colonel says that the lines “one feels were written by another hand, by an artist of a higher stamp than a Border ballad-maker.” But “it may also occur to one that the stanza belongs to some other ballad, and has *accidentally*” (my italics) “been pitchforked into this”: a very sound inference.

Now if Scott had only the Sharpe version, he was the last man to “pitchfork” into it, “accidentally,” a stanza from “some other ballad,” that stanza being as Colonel Elliot says “inapplicable” to Telfer and his circumstances. Poor Jamie, a small tenant-farmer, with ten cows, and, as far as we learn, not one horse, had no hawks and hounds; no “vassal lands,” and no reason to say that at the Dodhead he “maun never be again.” He could return from his long run! Scott certainly did not compose these lines; and he could not have pitchforked them into *Jamie Telfer*, either by accident or design.

Professor Child remarked on all this: “Stanza xii. is not only found elsewhere (compare *Young Beichan*, E vi.), but could not be more inappropriately brought in than here; Scott, however, is not responsible for that.” [\[120a\]](#)

The hawk that flies from tree to tree

is a formula; it comes in the Kinloch MS. copy of the ballad of *Jamie Douglas*, date about 1690.

I know no proof that Scott was acquainted with variant E of *Young Beichan*. [\[120b\]](#) If he had been, he could not have introduced into *Jamie Telfer* lines so utterly out of keeping with Telfer’s circumstances, as Colonel Elliot himself says that stanza xii. is. It may be argued, “if Scott *did* find stanza

xii. in his copy, it was in his power to cut it out; he treated his copies as he pleased.” This is true, but my position is that, of the two, Scott is more likely to have let the stanza abide where he found it (as he did with his MS. of *Tamlane*, retaining its absurdities) in his copy, than to “pitchfork it in,” from an obscure variant of *Young Beichan*, which we cannot prove that he had ever heard or read. But as we can never tell that Scott did *not* know any rhyme, we ask, why did he “pitchfork in” the stanza, where it was quite out of place? Child absolves him from this absurdity.

Thus Scott had before him another than the Sharpe copy; had a copy containing stanza xii. That copy presented the perversion—the transposition of Scott’s and Elliot’s—and into that copy Scott wrote the stanzas which bear his modern romantic mark. Colonel Elliot, we saw, is uncertain whether to attribute stanza xii. to “another hand, an artist of higher stamp than a Border ballad-maker,” or to regard it as belonging “to some other ballad,” and as having been “accidentally pitchforked into this one.” The stanza is, in fact, an old floating ballad stanza, attracted into the *cantefable of Susie Pye*, and the ballad of *Young Beichan* (E), and partly into *Jamie Douglas*. Thus Scott did not *make* the stanza, and we cannot suppose that, if he knew the stanza in any form, he either “accidentally pitchforked” or wilfully inserted into *Jamie Telfer* anything so absurdly inappropriate. The inference is that Scott worked on another copy, not the Sharpe copy.

If Scott had not a copy other than Sharpe’s, why should he alter Sharpe’s (vii.)

The moon was up and the sun was down,
into

The sun wasna up but the moon was down?

What did he gain by that? *Why did he make Jamie “of” not “in” the Dodhead, if he found “in” in his copy?* “In” means “tenant in,” “of” means “laird of,” as nobody knew better than Scott. Jamie is evidently no laird, but “of” was in Scott’s copy.

If the question were about two Greek texts, the learned would admit that these points in A (Scott) are not derived from B (Sharpe). Scott's additions have an obvious motive, they add picturesqueness to his clan. But the differences which I have noticed do nothing of that kind. When they affect the poetry they spoil the poetry, when they do not affect the poetry they are quite motiveless, whence I conclude that Scott followed his copy in these cases, and that his copy was not the Sharpe MS.

If I have satisfied the reader on that point I need not touch on Colonel Elliot's long and intricate argument to prove, or suggest, that Scott had before him no copy of the ballad except one supposed by the Colonel to have been taken by James Hogg from his mother's recitation, while that copy, again, is supposed to be the Sharpe MS.—all sheer conjecture. [\[122a\]](#) Not that I fear to encounter Colonel Elliot on this ground, but argufying on it is dull, and apt to be inconclusive.

In the letter of Hogg to Scott (June 30, 1803) as given by Mr. Douglas in *Familiar Letters*, Hogg says, "I am surprised to find that the songs in your collection differ so widely from my mother's . . . *Jamie Telfer* differs in many particulars." [\[123a\]](#) The marks of omission were all filled up in Hogg's MS. letter thus: "Is Mr. Herd's MS. genuine? I suspect it." Then it runs on, "*Jamie Telfer* differs in many particulars."

I owe this information to the kindness of Mr. Macmath. What does Hogg mean? Does "Is Mr. Herd's MS. genuine?" mean all Herd's MS. copies used by Scott? Or does it refer to *Jamie Telfer* in especial?

Mr. Macmath, who possesses C. K. Sharpe's MS. copy of the Elliot version, believes that it is Herd's hand as affected by age. Mr. Macmath and I independently reached the conclusion that by "Mr. Herd's MS." Hogg meant all Herd's MSS., which Scott quoted in *The Minstrelsy* of 1803. Their readings varied from Mrs. Hogg's; therefore Hogg misdoubted them. He adds that *Jamie Telfer* differs from his mother's version, without meaning that, for *Jamie*, Scott used a Herd MS.

CONCLUSION

I have now proved, I hope, that the ballad of *Jamie Telfer* is entirely mythical except for a few suggestions derived from historical events of 1596–97. I have shown, and Colonel Elliot agrees, that refusal of aid by Buccleuch (or by Elliot of Stobs) is impossible, and that the ballad, if it existed without this incident, must have been a Scott, and could not be an Elliot ballad. No farmer in Ettrick would pay protection-money to an Elliot on Liddel, while he had a Scott at Branksome. I have also disproved the existence of a *Jamie Telfer* as farmer at “Dodhead or Dodbank” in the late sixteenth century.

As to the character of Sir Walter Scott, I have proved, I hope, that he worked on a copy of the ballad which was not the Elliot version, or the Sharpe copy; so that this copy may have represented the Scotts as taking the leading part; while for the reasons given, it is apparently earlier than the Elliot version—cannot, at least, be proved to be later—and is topographically the more correct of the two. I have given antique examples of the same sort of perversions in *Otterburn*. If I am right, Colonel Elliot’s charge against Scott lacks its base—that Scott knew none but the Sharpe copy, whence it is inferred that he not only decorated the song (as is undeniable), but perverted it in a way far from sportsmanlike.

I may have shaken Colonel Elliot’s belief in the historicity of the ballad. His suspicions of Scott I cannot hope to remove, and they are very natural suspicions, due to Scott’s method of editing ballads and habit of “giving them a cocked hat and a sword,” as he did to stories which he heard; and repeated, much improved.

Absolute proof that Scott did, or did not, pervert the ballad, and turn a false Elliot into a false Scott version, cannot be obtained unless new documents bearing on the matter are discovered.

But, I repeat, as may be read in the chapter on *The Ballad of Otterburne*, such inversions and perversions of ballads occurred freely in the sixteenth century, and, in the seventeenth, the process may have been applied to *Jamie Telfer*. [\[125a\]](#)

KINMONT WILLIE

IF there be, in *The Border Minstrelsy*, a ballad which is still popular, or, at least, is still not forgotten, it is *Kinmont Willie*. This hero was an Armstrong, and one of the most active of that unbridled clan. He was taken prisoner, contrary to Border law, on a day of "Warden's Truce," by Salkeld of Corby on the Eden, deputy of Lord Scrope, the English Warden; and, despite the written remonstrances of Buccleuch, he was shut up in Carlisle Castle. Diplomacy failing, Buccleuch resorted to force, and, by a sudden and daring march, he surprised Carlisle Castle, rescued Willie, and returned to Branksome. The date of the rescue is 13th April 1596. The dispatches of the period are full of this event, and of the subsequent negotiations, with which we are not concerned.

The ballad is worthy of the cool yet romantic gallantry of the achievement. Kinmont Willie was a ruffian, but he had been unlawfully seized. This was one of many studied insults passed by Elizabeth's officials on Scotland at that time, when the English Government, leagued with the furious pulpiteers of the Kirk, and with Francis Stewart, the wild Earl of Bothwell, was persecuting and personally affronting James VI.

In Buccleuch, the Warden of the March, England insulted the man who was least likely to pocket a wrong. Without causing the loss of an English life, Buccleuch repaid the affront, recovered the prisoner, broke the strong Castle of Carlisle, made Scrope ridiculous and Elizabeth frantic.

In addition to *Kinmont Willie* there survive two other ballads on rescues of prisoners in similar circumstances. One is *Jock o' the Side*, of which there is an English version in the Percy MSS., *John a Side*. Scott's version, in *The Border Minstrelsy*, is from Caw's *Museum*, published at Hawick in 1784. Scott leaves out Caw's last stanza about a punch-bowl. There are other variations. Four Armstrongs break into Newcastle Tower. Jock,

heavily ironed, is carried downstairs on the back of one of them; they ride a river in spait, where the English dare not follow.

Archie o' Cafield, another rescue, Scott printed in 1802 from a MS. of Mr. Riddell of Glenriddell, a great collector, the friend of Burns. He omitted six stanzas, and "made many editorial improvements, besides Scotticising the spelling." In the edition published after his death (1833) he "has been enabled to add several stanzas from recitation." Leyden appears to have collected the copy whence the additional stanzas came; the MS., at Abbotsford, is in his hand. In this ballad the Halls, noted freebooters, rescue Archie o' Cafield from prison in Dumfries. As in *Jock o' the Side* and *Kinmont Willie*, they speak to their friend, asking how he sleeps; they carry him downstairs, irons and all, and, as in the two other ballads, they are pursued, cross a flooded river, banter the English, and then, in a version in the Percy MSS., "communicated to Percy by Miss Fisher, 1780," the English lieutenant says—

I think some witch has bore thee, Dicky,
Or some devil in hell been thy daddy.
I would not swam that wan water, double-horsed,
For a' the gold in Christenty.

Manifestly here was a form of Lord Scrope's reply to Buccleuch, in the last stanza of *Kinmont Willie*—

He is either himself a devil frae hell,
Or else his mother a witch may be,
I wadna hae ridden that wan water
For a' the gowd in Christentie.

Scott writes, in a preface to *Archie o' Cafield* and *Jock o' the Side*, that there are, with *Kinmont Willie*, three ballads of rescues, "the incidents in which nearly resemble each other; though the poetical description is so different, that the editor did not feel himself at liberty to reject any one of them, as borrowed from the others. As, however, there are several verses, which, in recitation, are common to all these three songs, the editor, to prevent unnecessary and disagreeable repetition, has used the freedom of appropriating them to that in which they have the best poetical effect." [129a]

Consequently the verse quoted from the Percy MS. of *Archie o' Cafield* may be improved and placed in the lips of Lord Scrope, in *Kinmont Willie*. But there is no evidence that Scott ever saw or even heard of this Percy MS., and probably he got the verse from recitation.

Now the affair of the rescue of Kinmont Willie was much more important and resonant than the two other rescues, and was certain to give rise to a ballad, which would contain much the same formulæ as the other two. The ballad-maker, like Homer, always uses a formula if he can find one. But *Kinmont Willie* is so much superior to the two others, so epic in its speed and concentration of incidents, that the question rises, had Scott even fragments of an original ballad of the Kinmont, "much mangled by reciters," as he admits, or did he compose the whole? No MS. copies exist at Abbotsford. There is only one hint. In a list of twenty-two ballads, pasted into a commonplace book, eleven are marked X (as if he had obtained them), and eleven others are unmarked, as if they were still to seek. Unmarked is *Kinmount Willie*.

Did he find it, or did he make it all?

In 1888, in a note to *Kinmont Willie*, I wrote: "There is a prose account very like the ballad in Scott of Satchells' *History of the Name of Scott*" (1688). Satchells' long-winded story is partly in unrhymed and unmetrical lines, partly in rhymes of various metres. The man, born in 1613, was old, had passed his life as a soldier; certainly could not write, possibly could not read.

Colonel Elliot "believes that Sir Walter wrote the whole from beginning to end, and that it is, in fact, a clever and extremely beautiful paraphrase of Satchells' rhymes." [\[130a\]](#)

This thorough scepticism is not a novelty, as Colonel Elliot quotes me I had written years ago, "In *Kinmont Willie*, Scott has been suspected of making the whole ballad." I did not, as the Colonel says, "mention the names of the sceptics or the grounds of their suspicions." "The sceptics," or one of them, was myself: I had "suspected" on much the same grounds as Colonel Elliot's own, and I shall give my reasons for adopting a more conservative opinion. One reason is merely subjective. As a man, by long familiarity with ancient works of art, Greek gems, for example, acquires a sense of

their authenticity, or the reverse, so he does in the case of ballads—or thinks he does—but of course this result of experience is no ground of argument: experts are often gulled. The ballad varies in many points from Satchells', which Colonel Elliot explains thus: "I think that the cause for the narrative at times diverging from that recorded by the rhymes (of Satchells), is due, partly to artistic considerations, partly to the author having wished to bring it more or less into conformity with history." [\[131a\]](#)

Colonel Elliot quotes Scott's preface to the ballad: "In many things Satchells agrees with the ballads current in his time" (1643–88), "from which in all probability he derived most of his information as to past events, and from which he occasionally pirates whole verses, as we noticed in the annotations upon the *Raid of the Reidswire*. In the present instance he mentions the prisoner's large spurs (alluding to fetters), and some other little incidents noticed in the ballad, which therefore was probably well known in his day."

As Satchells was born in 1613, while the rescue of *Kinmont Willie* by Buccleuch, out of Carlisle Castle, was in 1596, and as Satchells' father was in that adventure (or so Satchells says) he probably knew much about the affair from fresh tradition. Colonel Elliot notices this, and says: "The probability of Satchells having obtained information from a hypothetical ballad is really quite an inadmissible argument."

This comes near to begging the question. As contemporary incidents much less striking and famous than the rescue of *Kinmont Willie* were certainly recorded in ballads, the opinion that there was a ballad of *Kinmont Willie* is a legitimate hypothesis, which must be tested on its merits. For example, we shall ask, Does Satchells' version yield any traces of ballad sources?

My own opinion has been anticipated by Mr. Frank Miller in his *The Poets of Dumfriesshire* (p. 33, 1910), and in ballad-lore Mr. Miller is well equipped. He says: "The balance of probability seems to be in favour of the originality of *Kinmont Willie*," rather than of Satchells (he means, not of our *Kinmont Willie* as Scott gives it, but of a ballad concerning the Kinmont). "Captain Walter Scott's" (of Satchells) "*True History* was certainly gathered out of the ballads current in his day, as well as out of formal histories, and

his account of the assault on the Castle reads like a narrative largely due to suggestions from some popular lay.”

Does Satchells’ version, then, show traces of a memory of such a lay? Undoubtedly it does.

Satchells’ prolix narrative occasionally drops or rises into ballad lines, as in the opening about Kinmont Willie—

It fell about the Martinmas
When kine was in the prime

that Willie “brought a prey out of Northumberland.” The old ballad, disregarding dates, may well have opened with this common formula. Lord Scrope vowed vengeance:—

Took Kinmont the self-same night.

If he had had but ten men more,
That had been as stout as he,
Lord Scroup had not the Kinmont ta’en
With all his company.

Scott’s ballad (stanza i.) says that “fause Sakelde” and Scrope took Willie (as in fact Salkeld of Corby *did*), and

Had Willie had but twenty men,
But twenty men as stout as he,
Fause Sakelde had never the Kinmont ta’en,
Wi’ eight score in his cumpanie.

Manifestly either Satchells is here “pirating” a verse of a ballad (as Scott holds) or Scott, if he had *no* ballad fragments before him, is “pirating” a verse from Satchells, as Colonel Elliot must suppose.

In my opinion, Satchells had a memory of a Kinmont ballad beginning like *Jamie Telfer*, “It fell about the Martinmas tyde,” or, like *Otterburn*, “It fell about the Lammas tide,” and he opened with this formula, broke away from it, and came back to the ballad in the stanza, “If he had had but ten men

more,” which differs but slightly from stanza ii. of Scott’s ballad. That this is so, and that, later, Satchells is again reminiscent of a ballad, is no improbable opinion.

In the ballad (iii.–viii.) we learn how Willie is brought a prisoner across Liddel to Carlisle; we have his altercation with Lord Scrope, and the arrival of the news at Branksome, where Buccleuch is at table. Satchells also gives the altercation. In both versions Willie promises to “take his leave” of Scrope before he quits the Castle.

In Scott’s ballad (Scrope speaks) (stanza vi.).

Before ye cross my castle yate,
I trow ye shall take fareweel o’ me.

Willie replies—

I never yet lodged in a hostelrie,
But I paid my lawing before I gaed.

In Satchells, Lord Scrope says—

“Before thou goest away thou must
Even take thy leave of me?”
“By the cross of my sword,” says Willie then,
“I’ll take my leave of thee.”

Now, had Scott been pirating Satchells, I think he would have kept “By the cross of my sword,” which is picturesque and probable, Willie being no good Presbyterian. In *Otterburne*, Scott, *altering Hogg’s copy*, makes Douglas swear “By the might of Our Ladye.”

It is a question of opinion; but I do think that if Scott were merely paraphrasing and pirating Satchells, he could not have helped putting into his version the Catholic, “‘By the cross of my sword,’ then Willy said,” as given by Satchells. To do this was safe, as Scott had said that Satchells does pirate ballads. On the other hand, Satchells, composing in black 1688, when Catholicism had been stamped out on the *Scottish Border*, was not apt to invent “By the cross of my sword.” It *looks* like Scott’s work, for he, of

course, knew how Catholicism lingered among the spears of Bothwell, himself a Catholic, in 1596. But it is *not* Scott's work, it is in Satchells. In both Satchells and the ballad, news comes to Buccleuch. Here Satchells again balladises—

“It is that way?” Buckcleugh did say;
“Lord Scrope must understand
That he has not only done me wrong
But my Sovereign, James of Scotland.

“My Sovereign Lord, King of Scotland,
Thinks not his cousin Queen,
Will offer to invade his land
Without leave asked and gi'en.”

I do not see how Satchells could either invent or glean from tradition the gist of Buccleuch's diplomatic remonstrances, first with Salkeld, for Scrope was absent at the time of Willie's capture, then with Scrope. Buccleuch, in fact, wrote that the taking of Willie was “to the touch of the King,” a stain on his honour, says a contemporary manuscript. [\[135a\]](#)

In a *contemporary* ballad, a kind of rhymed news-sheet, the facts would be known and reported. But at this point (at Buccleuch's reception of the news of Kinmont), Scott is perhaps overmastered by his opportunity, and, I think, himself composes stanzas ix., x., xi., xii.

O is my basnet a widow's curch?
Or my lance a wand o' the willow tree?

and so on. Child and Mr. Henderson are of the same opinion; but it is only sense of style that guides us in such a matter, nor can I give other grounds for supposing that the original ballad appears again in stanza xiii.

O were there war between the lands,
As well I wot that there is none,
I would slight Carlisle castle high,
Tho' it were built o' marble stone!

Thence, I think, the original ballad (doubtless made “harmonious,” as Hogg put it) ran into stanza xxxi., where Scott probably introduced the Elliot tune (if it be ancient)—

O wha dare meddle wi’ me?

Satchells next, through a hundred and forty lines, describes Buccleuch’s correspondence with Scrope, his counsels with his clansmen, and gives all their names and estates, with remarks on their relationships. He thinks himself a historian and a genealogist. The stuff is partly in prose lines, partly in rhymed couplets of various lengths. There are two or three more or less ballad-like stanzas at the beginning, but they are too bad for any author but Satchells.

Scott’s ballad “cuts” all that, omits even what Satchells gives—mentions of Harden, and goes on (xv.)—

He has called him forty marchmen bauld,
I trow they were of his own name.
Except Sir Gilbert Elliot called
The Laird of Stubs, I mean the same.

Now I would stake a large sum that Sir Walter never wrote that “stall-copy” stanza! Colonel Elliot replies that I have said the ballad-faker should avoid being too poetical. The ballad-faker *should* shun being too poetical, as he would shun kippered sturgeon; but Scott did not know this, nor did Hogg. We can always track them by their too decorative, too literary interpolations. On this I lay much stress.

The ballad next gives (xvi.–xxv.) the spirited stanzas on the ride to the Border—

There were five and five before them a’,
Wi’ hunting horns and bugles bright;
And five and five came wi’ Buccleuch,
Like Warden’s men arrayed for fight.

And five and five like a mason gang,
That carried the ladders lang and hie;

And five and five like broken men,
And so they reached the Woodhouselee.

—a house in Scotland, within “a lang mile” of Netherby, in England, the seat of the Grahams, who were partial, for private reasons, to the Scottish cause. They were at deadly feud with Thomas Musgrave, Captain of Bewcastle, and Willie had married a Graham.

Now in my opinion, up to stanza xxvi., all the evasive answers given to Salkeld by each gang, till Dicky o’ Dryhope (a real person) replies with a spear-thrust—

“For never a word o’ lear had he,”

are not an invention of Scott’s (who knew that Salkeld was not met and slain), but a fantasy of the original ballad. Here I have only familiarity with the romantic perversion of facts that marks all ballads on historical themes to guide me.

Salkeld is met—

“As we crossed the Batable land,
When to the English side we held.”

The ballad does not specify the crossing of Esk, nor say that Salkeld was on the English side; nor is there any blunder in the reply of the “mason gang”—

“We gang to harry a corbie’s nest,
That wons not far frae Woodhouselee.”

Whether on English or Scottish soil the masons say not, and their pretence is derisive, bitterly ironical.

Colonel Elliot makes much of the absence of mention of the Esk, and says “it is *after* they are in England that the false reports are spread.” [\[139a\]](#) But the ballad does not say so—read it! All passes with judicious vagueness.

“As we crossed the Batable land,
When to the English side we held.”

Satchells knows that the ladders were made at Woodhouselee; it took till nightfall to finish them. The ballad, swift and poetical, takes the ladders for granted—as a matter of fact, chronicled in the dispatches, the Grahams of Netherby harboured Buccleuch: Netherby was his base.

“I could nought have done that matter without great friendship of the Grames of Eske,” wrote Buccleuch, in a letter which Scrope intercepted. [\[139b\]](#)

In Satchells, Buccleuch leaves half his men at the “Stonish bank” (Staneshaw bank) “*for fear they had made noise or din.*” An old soldier should have known better, and the ballad (his probable half-remembered source here) *does* know better—

“And there the laird garr’d leave our *steeds*,
For fear that they should stamp and nie,”

and alarm the castle garrison. Each man of the post on the ford would hold two horses, and also keep the ford open for the retreat of the advanced party. The ballad gives the probable version; Satchells, when offering as a reason for leaving half the force, lest they should make “noise or din,” is maundering. Colonel Elliot does not seem to perceive this obvious fact, though he does perceive Buccleuch’s motive for dividing his force, “presumably with the object of protecting his line of retreat,” and also to keep the horses out of earshot, as the ballad says. [\[140a\]](#)

In Satchells the river is “in no great rage.” In the ballad it is “great and meikle o’ spait.” And it really was so. The MS. already cited, which Scott had not seen when he published the song, says that Buccleuch arrived at the “Stoniebank beneath Carleile brig, the water being at the tyme, through raines that had fallen, weill thick.”

In Scott’s *original* this river, he says, was the Esk, in Satchells it is the Eden, and Scott says he made this necessary correction in the ballad. In Satchells the storming party

Broke a sheet of leid on the castle top.

In the ballad they

Cut a hole through a sheet o' lead.

Both stories are erroneous; the ladders were too short; the rescuers broke into a postern door. Scrope told this to his Government on the day after the deed, 14th April. [\[140b\]](#)

In xxxi. the ballad makes Buccleuch sound trumpets when the castle-roof was scaled; in fact it was not scaled. The ladders were too short, and the Scots broke in a postern door. The Warden's trumpet blew "O wha dare meddle wi' me," and here, as has been said, I think Scott is the author. Here Colonel Elliot enters into learning about "Wha dare meddle wi' me?" a "Liddesdale tune," and in the poem an adaptation, by Scott, of Satchells' "the trumpets sounded 'Come if ye dare.'"

Satchells makes the trumpets sound when the rescuers bring Kinmont Willie to the castle-top on the ladder (which they did not), and again when the rescuers reach the ground by the ladder. They made no use at all of the ladders, which were too short, and Willie, says the ballad, lay "in the *lower* prison." They came in and went out by a door; but the trumpets are not apocryphal. They, and the shortness of the ladders, are mentioned in a MS. quoted by Scott, and in Birrell's contemporary *Diary*, i. p. 57. In the MS. Buccleuch causes the trumpets to be sounded from below, by a detachment "in the plain field," securing the retreat. His motive is to encourage his party, "and to terrify both castle and town by imagination of a greater force." Buccleuch again "sounds up his trumpet before taking the river," in the MS. Colonel Elliot may claim stanza xxxi. for Scott, and also the tune "Wha dare meddle wi' me?" he may even claim here a suggestion from Satchells' "Come if ye dare." Colonel Elliot says that no tune of this title ever existed, a thing not easy to prove. [\[142a\]](#)

In the conclusion, with differences, there are resemblances in the ballad and Satchells. Colonel Elliot goes into them very minutely. For example, he says that Kinmont is "made to ride off; not on horseback, but on Red Rowan's back!"

The ballad says not a word to that effect. Kinmont's speech about Red Rowan as "a rough beast" to ride, is made immediately after the stanza,

"Then shoulder high, with shout and cry,
We bore him down the ladder lang;
At every stride Red Rowan made,
I wot the Kinmont's airns played clang." [\[142b\]](#)

After this verse Kinmont makes his speech (xl.–xli.). But if he *did* ride on Red Rowan's back to Staneshaw bank, it was the best thing that a heavily ironed man could do. In the ballad (xxvii.) no horses of the party were waiting at the castle, *all* horses were left behind at Staneshaw bank (Satchells brings horses, or at least a horse for Willie, to the castle). On what could Willie "ride off," except on Red Rowan? [\[142c\]](#)

Stanzas xxxv., xxxvi. and xliv. are related, we have seen, to passages in *Jock o' the Side* and *Archie o' Cafield*, but ballads, like Homer, employ the same formulæ to describe the same circumstances: a note of archaism, as in Gaelic poetic passages in *Märchen*.

I do not pretend always to know how far Scott kept and emended old stanzas mangled by reciters: there are places in which I am quite at a loss to tell whether he is "making" or copying.

I incline to hold that Satchells was occasionally reminiscent of a ballad for the reasons and traces given, and I think that Scott when his and Satchells' versions coincide, did not borrow direct from Satchells, but that both men had a ballad source.

That ballad was later than the popular belief, held by Satchells, that Gilbert Elliot was at the time (1596) laird of Stobs, which he did not acquire till after the Union (1603), and that he (the only man not a Scot, says Satchells, wrongly) rode with Buccleuch. Elliot is not accused of doing so in Scrope's dispatches, but he may have come as far as Staneshaw bank, where half the company were left behind, says Satchells, with the horses, which were also left, says the ballad. In that case Elliot would not be observed in or near the Castle. Yet it may have been known in Scotland that he was of the party.

He was, as Satchells says, a cousin, he was also a friend of Buccleuch's, and he may conceivably have taken a part in this glorious adventure, though he could not, *at the moment*, be called laird of Stobs. Were I an Elliot, this opinion would be welcome to me! Really, Salkeld was in a good position to know whether Elliot rode with Buccleuch or not.

The whole question is not one on which I can speak dogmatically. A person who suspects Scott intensely may believe that there were no ballad fragments of *Kinmont* in his possession. The person who, like myself, thinks Satchells, with his "It fell about the Martinmas," knew a ballad vaguely, believes that Satchells *had* some ballad sources bemuddled in his old memory.

A person who cannot conceive that Scott wrote

Except Sir Gilbert Elliot, called
The laird of Stobs, I mean the same,

will hold that Scott knew some ballad fragments, *disjecta membra*. But I quite agree with Colonel Elliot, that the ballad, *as it stands* (with the exception, to my mind, of some thirty stanzas, themselves emended), "belongs to the early nineteenth century, not to the early seventeenth." The time for supposing the poem, *as it stands*, to be "saturated with the folk-spirit" all through is past; the poem is far too much contaminated by the genius of Scott itself; like Burns' transfiguration of "the folk-spirit" at its best.

Near the beginning of this paper I said, in answer to a question of Colonel Elliot's, that I myself was the person who had suspected Scott of composing the whole of *Kinmont Willie*, and I have given my reasons for not remaining constant to my suspicions. But in a work which Colonel Elliot quotes, the abridged edition of Child's great book by Mrs. Child-Sargent and Professor Kittredge (1905), the learned professor writes, "*Kinmont Willie* is under vehement suspicion of being the work of Sir Walter Scott." Mr. Kittredge's entire passage on the matter is worth quoting. He first says—"The traditional ballad appears to be inimitable by any person of literary cultivation," "the efforts of poets and poetasters" end in "invariable failure."

I do not think that they need end in failure except for one reason. The poet or poetaster cannot, now, except by flat lying and laborious forgery of old papers, produce any documentary evidence to prove the *authenticity* of his attempt at imitation. Without documentary evidence of antiquity, no critic can approach the imitation except in a spirit of determined scepticism. He knows, certainly, that the ballad is modern, and, knowing that, he easily finds proofs of modernism even where they do not really exist. I am convinced that to imitate a ballad that would, except for the lack of documentary evidence, beguile the expert, is perfectly feasible. I even venture to offer examples of my own manufacture at the close of this volume. I can find nothing suspicious in them, except the deliberate insertion of formulæ which occur in genuine ballads. Such *wiederholungen* are not reasons for rejection, in my opinion; but they are *suspect* with people who do not understand that they are a natural and necessary feature of archaic poetry, and this fact Mr. Kittredge does understand.

Mr. Kittredge speaks of Sir Walter's unique success with *Kinmont Willie*; but is Sir Walter successful? Some of his stanzas I, for one, can hardly accept, even as emended traditional verses.

Mr. Kittredge writes—"Sir Walter's success, however, in a special kind of balladry for which he was better adapted by nature and habit of mind than for any other, would only emphasise the universal failure. And it must not be forgotten that *Kinmont Willie*, if it be Scott's work, is not made out of whole cloth; it is a working over of one of the best traditional ballads known (*Jock o' the Side*), with the intention of fitting it to an historical exploit of Buccleuch. Further, the subject itself was of such a nature that it might well have been celebrated in a ballad,—indeed, one is tempted to say, it must have been so celebrated."

Not a doubt of *that*!

"And, finally, Sir Walter Scott felt towards 'the Kinmont' and 'the bold Buccleuch' precisely as the moss-trooping author of such a ballad would have felt. For once, then, the miraculous happened. . . ." [\[146a\]](#) Or did not happen, for the exception is "solitary though doubtful," and "under vehement suspicion." But Mr. Kittredge must remember that no known Scottish ballad "is made out of whole cloth." All have, in various degrees,

the successive modifications wrought by centuries of oral tradition, itself, in some cases, modifying a much modified printed “stall-copy” or “broadside.”

Take *Jock o’ the Side*. The oldest version is in the Percy MS. [\[147a\]](#) As Mr. Henderson says, “it contains many evident corruptions,”

“Jock on his lively bay, Wat’s on his white horse behind.”

There is an example of what the original author could not have written!

We do not know how good *Jock* was when he left his poet’s hands; and Scott has not touched him up. We cannot estimate the original excellence of any traditional poem by the state in which we find it,

Corrupt by every beggar-man,
And soiled by all ignoble use.

CONCLUSIONS

WE have now examined critically the four essentially *Border* ballads which Sir Walter is suspected of having “edited” in an unrighteous manner. Now he helps to forge, and issues *Auld Maitland*. Now he, or somebody, makes up *Otterburne*, “partly of stanzas from Percy’s *Reliques*, which have undergone emendations calculated to disguise the source from which they came, partly of stanzas of modern fabrication, and partly of a few stanzas and lines from Herd’s version.” [\[148a\]](#) Thirdly, Scott, it is suggested, knew only what I call “the Elliot version” of *Jamie Telfer*, perverted that by transposing the rôles of Buccleuch and Stobs, and added picturesque stanzas in glorification of his ancestor, Wat of Harden. Fourthly, he is suspected of “writing the whole ballad” of *Kinmont Willie*, “from beginning to end.”

Of these four charges the first, and most disastrous, we have absolutely disproved. Scott did not write one verse of the *Auld Maitland*; he edited it with unusual scrupulosity, for he had but one copy, and an almost identical recitation. He could not “eke and alter” by adding verses from other texts, as he did in *Otterburne*.

Secondly, Scott did not make up *Otterburne* in the way suggested by his critic. He took Hogg’s MS., and I have shown minutely what that MS. was, and he edited it in accordance with his professed principles. He made “a standard text.” It is only to be regretted that Hogg did not take down *verbatim* the words of his two reciters and narrators, and that Scott did not publish Hogg’s version, with his letter, in his notes; but that was not his method, nor the method of his contemporaries.

Thirdly, as to *Jamie Telfer*, long ago I wrote, opposite

“The lyart locks of Harden’s hair,”

aut Jacobus aut Diabolus, meaning that either James Hogg or the devil composed that stanza. I was wrong. Hogg had nothing to do with it; on internal evidence Scott was the maker. But that he transposed the Scott and Elliot *rôles* is incapable of proof; and I have shown that such perversions were made in very early times, where national, not clan prejudices were concerned. I have also shown that Scott's version contains matter not in the Elliot version, matter injurious to the poem, as in one stanza, certainly not composed by himself, the stanza being an inappropriate stray formula from other ballads. But, in the absence of manuscript materials I can only produce presumptions, not proofs.

Lastly, *Kinmont Willie*, and Scott's share in it, is matter of presumption, not of proof. He had been in quest of the ballad, as we know from his list of *desiderata*; he says that what he got was "mangled" by reciters, and that, in what he got, one river was mentioned where topography requires another. He also admits that, in the three ballads of rescues, he placed passages where they had most poetical appropriateness. My arguments to show that Satchells had memory of a Kinmont ballad will doubtless appeal with more or less success, or with none, to different students. That an indefinite quantity of the ballad, and improvements on the rest, are Scott's, I cannot doubt, from evidence of style.

"Sir Walter Scott it is impossible to assail, however much the scholarly conscience may disapprove," says Mr. Kittredge. ^[150a] Not much is to be taken by assailing him! "Business first, pleasure afterwards," as, according to Sam Weller, Richard III. said, when he killed Henry VI. before smothering the princes in the Tower. I proceed to pleasure in the way of presenting imitations of "the traditional ballad" which "appears to be inimitable by any person of literary cultivation," according to Mr. Kittredge.

IMITATIONS OF BALLADS

The three following ballads are exhibited in connection with Mr. Kittredge's opinion that neither poet nor poetaster can imitate, to-day, the traditional ballad. Of course, not one of my three could now take in an expert, for he would ask for documentary evidence of their antiquity. But I doubt if Mr. Kittredge can find any points in my three imitations which infallibly betray their modernity.

The first, *Simmy o' Whythaugh*, is based on facts in the Border despatches. Historically the attempt to escape from York Castle failed; after the prisoners had got out they were recaptured.

The second ballad, *The Young Ruthven*, gives the traditional view of the slaying of the Ruthvens in their own house in Perth, on 5th August 1600.

The third, *The Dead Man's Dance*, combines the horror of the ballads of *Lizzy Wan* and *The Bonny Hind*, with that of the Romaic ballad, in English, *The Suffolk Miracle* (Child, No. 272).

I—SIMMY O' WHYTHAUGH

O, will ye hear o' the Bishop o' York,
O, will ye hear o' the Armstrongs true,
How they hae broken the Bishop's castle,
And carried himsel' to the bauld Buccleuch?

They were but four o' the Lariston kin,
They were but four o' the Armstrong name,
Wi' stout Sim Armstrong to lead the band,
The Laird o' Whythaugh, I mean the same.

They had done nae man an injury,
They had na robbed, they had na slain,
In pledge were they laid for the Border peace,
In the Bishop's castle to dree their pain.

The Bishop he was a crafty carle,
He has ta'en their red and their white monie,
But the muddy water was a' their drink,
And dry was the bread their meat maun be.

"Wi' a ged o' airn," did Simmy say,
"And ilka man wi' a horse to ride,
We aucht wad break the Bishop's castle,
And carry himsel' to the Liddel side.

"The banks o' Whythaugh I sall na see,
I never sall look upon wife and bairn;

I wad pawn my saul for my gude mear, Jean,
I wad pawn my saul for a ged o' airn."

There was ane that brocht them their water and bread;
His gude sire, he was a kindly Scot,
Says "Your errand I'll rin to the Laird o' Cessford,
If ye'll swear to pay me the rescue shot."

Then Simmy has gi'en him his seal and ring,
To the Laird o' Cessford has ridden he—
I trow when Sir Robert had heard his word
The tear it stood in Sir Robert's e'e.

"And sall they starve him, Simmy o' Whythaugh,
And sall his bed be the rotten strae?
I trow I'll spare neither life nor gear,
Or ever I live to see that day!

"Gar bring up my horses," Sir Robert he said,
"I bid ye bring them by three and three,
And ane by ane at St. George's close,
At York gate gather your companie."

Oh, some rade like corn-cadger men,
And some like merchants o' linen and hose;
They slept by day and they rade by nicht,
Till they a' convened at St. George's close.

Ilka mounted man led a bridded mear,
I trow they had won on the English way;
Ilka belted man had a brace o' swords,
To help their friends to fend the fray.

Then Simmy he heard a hoolet cry
In the chamber strang wi' never a licht;
"That's a hoolet, I ken," did Simmy say,
"And I trow that Teviotdale's here the nicht!"

They hae grippit a bench was clamped wi' steel,
Wi' micht and main hae they wrought, they four,

They hae burst it free, and rammed wi' the bench,
Till they brake a hole in the chamber door.

“Lift strae frae the beds,” did Simmy say;
To the gallery window Simmy sped,
He has set his strength to a window bar,
And bursten it out o' the binding lead.

He has bursten the bolts o' the Elliot men,
Out ower the window the strae cast he,
For they bid to loup frae the window high,
And licht on the strae their fa' would be.

To the Bishop's chamber Simmy ran;
“Oh, sleep ye saft, my Lord!” says he;
“Fu' weary am I o' your bread and water,
Ye'se hae wine and meat when ye dine wi' me.”

He has lifted the loon across his shoulder;
“We maun leave the hoose by the readiest way!”
He has cast him doon frae the window high,
And a' to hansel the new fa'n strae!

Then twa by twa the Elliots louped,
The Armstrongs louped by twa and twa.
“I trow, if we licht on the auld fat Bishop,
That nane the harder will be the fa'!”

They rade by nicht and they slept by day;
I wot they rade by an unkenned track;
“The Bishop was licht as a flea,” said Sim,
“Or ever we cam' to the Liddel rack.”

Then “Welcome, my Lord,” did Simmy say,
“We'll win to Whythaugh afore we dine,
We hae drunk o' your cauld and ate o' your dry,
But ye'll taste o' our Liddesdale beef and wine.”

II—THE YOUNG RUTHVEN

The King has gi'en the Queen a gift,
For her May-day's propine,
He's gi'en her a band o' the diamond-stane,
Set in the siller fine.

The Queen she walked in Falkland yaird,
Beside the hollans green,
And there she saw the bonniest man
That ever her eyes had seen.

His coat was the Ruthven white and red,
Sae sound asleep was he
The Queen she cried on May Beatrix,
That bonny lad to see.

“Oh! wha sleeps here, May Beatnix,
Without the leave o' me?”
“Oh! wha suld it be but my young brother
Frae Padua ower the sea!

“My father was the Earl Gowrie,
An Earl o' high degree,
But they hae slain him by fause treason,
And gar'd my brothers flee.

“At Padua hae they learned their leir
In the fields o' Italie;
And they hae crossed the saut sea-faem.
And a' for love o' me!”

* * * *

The Queen has cuist her siller band
About his craig o' snaw;
But still he slept and naething kenned,
Aneth the hollans shaw.

The King was walking thro' the yaird,
He saw the siller shine;

“And wha,” quo’ he, “is this galliard
That wears yon gift o’ mine?”

The King has gane till the Queen’s ain bower,
An angry man that day;
But bye there cam’ May Beatrix
And stole the band away.

And she’s run in by the little black yett,
Straight till the Queen ran she:
“Oh! tak ye back your siller band,
On it gar my brother dee!”

The Queen has linked her siller band
About her middle sma’;
And then she heard her ain gudeman
Come sounding through the ha’.

“Oh! whare,” he cried, “is the siller band
I gied ye late yestreen?
The knops was a’ o’ the diamond-stane,
Set in the siller sheen.”

“Ye hae camped birling at the wine,
A’ nicht till the day did daw;
Or ye wad ken your siller band
About my middle sma’!”

The King he stude, the King he glowered,
Sae hard as a man micht stare:
“Deil hae me! Like is a richt ill mark,—
Or I saw it itherwhere!

“I saw it round young Ruthven’s neck
As he lay sleeping still;
And, faith, but the wine was wondrous guid,
Or my wife is wondrous ill!”

There was na gane a week, a week,
A week but barely three;

The King has hounded John Ramsay out,
To gar young Ruthven dee!

They took him in his brother's house,
Nae sword was in his hand,
And they hae slain him, young Ruthven,
The bonniest in the land!

And they hae slain his fair brother,
And laid him on the green,
And a' for a band o' the siller fine
And a blink o' the eye o' the Queen!

Oh! had they set him man to man,
Or even ae man to three,
There was na a knight o' the Ramsay bluid
Had gar'd Earl Gowrie dee!

III—THE DEAD MAN'S DANCE

“The dance is in the castle ha',
And wha will dance wi' me?”
“There's never a man o' living men,
Will dance the nicht wi' thee!”

Then Margaret's gane within her bower,
Put ashes on her hair,
And ashes on her bonny breast
And on her shoulders bare.

There cam' a knock to her bower-door,
And blythe she let him in;
It was her brother frae the wars,
She lo'ed abune her kin.

“Oh, Willie, is the battle won?
Or are you fled?” said she,
“This nicht the field was won and lost,
A' in a far countrie.

“This nicht the field was lost and won,
A’ in a far countrie,
And here am I within your bower,
For nane will dance with thee.”

“Put gold upon your head, Margaret,
Put gold upon your hair,
And gold upon your girdle-band,
And on your breast so fair!”

“Nay, nae gold for my breast, Willie,
Nay, nae gold for my hair,
It’s ashes o’ oak and dust o’ earth,
That you and I maun wear!

“I canna dance, I mauna dance,
I daurna dance with thee.
To dance atween the quick and the deid,
Is nae good companie.”

* * *

The fire it took upon her cheek,
It took upon her chin,
Nae Mass was sung, nor bells was rung,
For they twa died in deidly sin.

FOOTNOTES

[0a] Child, part vi. p. 513.

[0b] Child, part x. p. 294.

[1a] Hogg to Scott, 30th June 1802, given later in full.

[2a] See *De Origine, Moribus, et Rebus Gestis Scotorum*, p. 60 (1578).

[4a] Lockhart, vol. ii. p. 60 (1839).

[8a] Lockhart, vol. ii. pp. 130–135 (1839).

[10a] *Minstrelsy*, iii. 186–198.

[15a] Child, part ix., 187.

[17a] *Further Essays*, p. 184.

[18a] Child, vol. i. p. xxx.

[19a] *Minstrelsy*, 2nd edition, vol iii. (1803).

[19b] *Further Essays*, pp. 247, 248.

[21a] Carruthers, “Abbotsford Notanda,” in R. Chambers’s *Life of Scott*, pp. 115–117 (1891).

[21b] *Ibid.*, p. 118.

[23a] Carruthers, “Abbotsford Notanda,” in R. Chambers’s *Life of Scott*, pp. 115–117 (1891).

[23b] Lockhart, vol. ii. p. 99.

[24a] Lockhart, *Life of Sir Walter Scott, Bart.*, vol. ii. pp. 99, 100 (1829).

[25] Ritson of 10th April 1802, in his *Letters of Joseph Ritson, Esq.*, vol. ii. p. 218. Letter of 10th June 1802, *Ibid.*, p. 207. Ritson returned the original manuscript of *Auld Maitland* on 28th February 1803, *Ibid.*, p. 230.

[26a] Carruthers, pp. 128, 131.

[30a] *Sweet William's Ghost*.

[31a] *Further Essays*, pp. 225, 226.

[32a] *Further Essays*, pp. 227–234.

[41a] *Minstrelsy*, vol. iii. pp. 307–310 (1833).

[41b] *Ibid.*, vol. iii. p. 314.

[44a] *Publications of the Modern Language Association of America*, xxi. 4, pp. 804–806.

[47a] *Further Essays*, p. 237.

[47b] Carruthers, p. 128.

[47c] Lockhart, vol. ii. pp. 67, 70, 71, 72, 74, 75, 79.

[48a] Craig Brown, *History of Selkirkshire*.

[49a] Child, part ix. p. 185.

[51a] Scott to Laidlaw, 21st January 1803; Carruthers, pp. 121, 122.

[53a] *Further Essays*, p. 45.

[53b] Child, part viii. pp. 499–502.

[53c] *Further Essays*, p. 10, where only two references to sources are given.

[54a] Child, part vi. p. 292.

[54b] *Ibid.*, part ix. p. 243. Herd, 1776; also C. K. Sharpe's MS.

[59a] Bain, *Calendar*, vol. iv. pp. 87–93.

[62a] This is scarcely accurate. Hogg, in fact, made up one copy, in two parts, from the recitation of two old persons, as we shall see.

[62b] *Further Essays*, pp. 12–27.

[63a] *Further Essays*, p. 37.

[67a] Scott to Laidlaw, Carruthers, p. 129.

[69a] English version, xi.–xv.

[70a] *Further Essays*, p. 58.

[73a] *Further Essays*, p. 31.

[75a] Godscroft, ed. 1644, p. 100; Child, part vi. p. 295.

[79a] *The Hunting of the Cheviot, and Herd's Otterburn*.

[83a] Herd, and *Complaynte of Scotland*, 1549.

[84a] Child, part ix. p. 244, stanza xiii.

[84b] *Further Essays*, p. 27.

[89] *Further Essays on Border Ballads*, p. 184. Andrew Elliot, 1910. To be quoted as *F. E. B. B.* The other work on the subject is Colonel Elliot's *The Trustworthiness of the Border Ballads*. Blackwoods, 1906.

[91a] *F. E. B. B.*, p. 199.

[91b] *F. E. B. B.*, p. 200.

[93a] *Trustworthiness of the Border Ballads*, p. vi.

[95a] Satchells, pp. 13, 14. Edition of 1892.

[95b] *Ibid.*, p. 14.

[95c] *Ibid.*, part ii. pp. 35, 36.

[97a] *F. E. B. B.*, p. 200.

[98a] Child, *English and Scottish Popular Ballads*, part viii. p. 518. He refers to “Letters I. No. 44” in MS.

[98b] See Sargent and Kittredge’s reduced edition of Child, p. 467, 1905. They publish this Elliot version only. The version has modern spelling. On this version and its minor variations from Scott’s, I say more later; Colonel Elliot gives no critical examination of the variations which seem to me essential.

[99a] *F. E. B. B.*, p. 184.

[101a] Robert Scott (the poet Satchells’s father) “had Southinrigg for his service” to Buccleuch, says Sir William Fraser, in his *Memoirs of the House of Buccleuch*. (See Satchells, 1892, pp. vii., viii.) But the “fathers” of Satchells “having dilapidate and engaged their Estate by Cautionary,” poor Satchells was brought up as a cowherd, till he went to the wars, and never learned to write, or even, it seems, to read; as he says in the Dedication of his book to Lord Yester.

[102a] *The Trustworthiness of the Border Ballads*, opp. p. 36.

[103a] *Border Papers*, vol. i. pp. 120–127.

[104a] *Border Papers*, vol. i. p. 106.

[106a] Scrope, in *Border Papers*, vol. ii. pp. 148–152.

[106b] *Border Papers*, vol. ii. p. 307, No. 606.

[107a] *Border Papers*, vol. ii. pp. 299–303

[108a] *Border Papers*, vol. ii. p. 356.

[108b] *F. E. B. B.*, p. 161.

[110a] See his *Border Minstrelsy*, vol. ii. p. 15.

[110b] *F. E. B. B.*, p. 156.

[111a] *T. B. B.*, p. 14.

[112a] *T. B. B.*, p. 12.

[112b] *T. B. B.*, p. 12.

[113a] *Memoirs of Robert Carey*, p. 98, 1808.

[114a] *T. B. B.*, pp. 19, 20.

[115] *T. B. B.*, p. 20.

[120a] Child, part vii. p. 5.

[120b] Variant E is a patched-up thing from five or six MS. sources and a printed “stall copy.” Jamieson published it in 1817. Motherwell had heard a *cantefable*, or version in alternate prose and verse, which contained the stanza. It is not identical with stanza xxxii. in Scott’s *Jamie Telfer*, but runs thus—

My hounds they all go masterless,
My hawks they fly from tree to tree,
My younger brother will heir my lands,
Fair England again I’ll never see.

Child, part ii. p. 454 *et seqq.* The speaker is young Beichan, a prisoner in the dungeon of a professor of the Moslem faith.

[122a] *F. E. B. B.*, pp. 179–185.

[123a] Child, part viii. p. 518.

[125a] Aytoun, in *The Ballads of Scotland* (vol. i. p. 211), says that his copy of *Jamie Telfer* “is almost *verbatim* the same as that given in the *Border Minstrelsy*.” He does not tell us where he got his copy; or why the Captain’s bride’s speech (Sharpe, stanza xxxvi.) differs from the version in Scott and Sharpe. He gives the stanza which comes last in Scott’s copy, and is too bad and enfeebling to be attributed to Scott’s pen. He omits the stanza which has strayed in from other ballads,

“My hounds may a’ rin masterless.”

But as Aytoun confessedly rejected such inappropriate stanzas, he may have found it in his copy and excised it.

- [129a] *Minstrelsy*, vol. iii. p. 76, 1803.
- [130a] *Further Essays*, p. 112.
- [131a] *Further Essays*, p. 112.
- [135a] In *Minstrelsy*, vol. ii. p. 35 (1833).
- [139a] *Further Essays*, p. 124.
- [139b] *Border Papers*, vol. ii. p. 367.
- [140a] *Further Essays*, pp. 123, 124.
- [140b] *Border Papers*, vol. ii. p. 121.
- [142a] *Further Essays*, p. 125.
- [142b] Birrell's *Diary* vouches for the irons.
- [142c] *Further Essays*, p. 128.
- [146a] Sargent and Kittredge, pp. xxix., xxx.
- [147a] Hales and Furnivall, ii. pp. 205–207.
- [148a] *Further Essays*, p. 45.
- [150a] *Ballads*, p. xxix.

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